

THE STATUTES OF THE REPUBLIC OF SINGAPORE

IMMIGRATION ACT 1959

2020 REVISED EDITION

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Immigration Act 1959

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An Act relating to immigration into, and departure from, Singapore.

[16 September 1963]

PART 1

PRELIMINARY

Short title

1. This Act is the Immigration Act 1959.

Interpretation

2. In this Act, unless the context otherwise requires —

"advance passenger information" means information relating to any passenger required to be furnished to the Controller prior to the arrival in Singapore of the vessel, aircraft, train or bus (as the case may be) on which the passenger will be travelling to Singapore;

[Act 31 of 2023 wef 31/07/2025]

"arrestable offence" and "non-arrestable offence" have the meanings given by section 2(1) of the Criminal Procedure Code 2010;

[Act 31 of 2023 wef 31/12/2024]

"arrive" means —

(*a*) in relation to an aircraft, the aircraft coming to a stop after landing;

(*b*) in relation to a vessel or ship, the securing of the vessel or ship for any purposes, including for the embarkation or disembarkation of its passengers or the loading or unloading of its cargo or stores or both;

[Act 31 of 2023 wef 31/07/2025]

(*c*) in relation to a train, the train coming to a stop at a train checkpoint;

(*d*) in relation to a bus, the bus reaching an authorised point of entry;

[Act 31 of 2023 wef 31/07/2025]

(*e*) in relation to any mode of land transport other than a train or a bus, the mode of land transport reaching an authorised point of entry; or

[Act 31 of 2023 wef 31/07/2025]

(*f*) in relation to a person who travels to Singapore on foot, the person proceeding to an immigration control post;

[Act 31 of 2023 wef 31/07/2025]

"authorised airport", "authorised landing place", "authorised train checkpoint", "authorised point of entry", "authorised

departing place" and "authorised point of departure" mean, respectively, an airport, a landing place, a train checkpoint, a point of entry, a departing place or a point of departure declared as such under section 5;

"authorised area" means an authorised airport, authorised landing place, authorised train checkpoint, authorised point of entry, authorised place of embarkation, authorised departing place, authorised point of departure or immigration control post declared as such under section 5;

"auxiliary police officer" means a person appointed as such under Part 9 of the Police Force Act 2004;

[Act 31 of 2023 wef 31/12/2024]

"certificate" means a certificate of status issued under the provisions of any regulations made under section 55;

"Controller" means the Controller of Immigration appointed under section 3;

"Controller of Work Passes" means the Controller of Work Passes appointed under section 3 of the Employment of Foreign Manpower Act 1990;

"country" includes a State or territory;

[Act 31 of 2023 wef 31/12/2024]

"crew" includes every seaman on a vessel, and every person employed in the operation of an aircraft, a train or a bus or in any service rendered to the crew or passengers of an aircraft in flight or a train, or a bus, in motion;

[Act 31 of 2023 wef 31/07/2025]

"Director of Marine" means the Director of Marine appointed under section 4(1) of the Merchant Shipping Act 1995 and includes the Deputy Director of Marine appointed under that subsection and such other officers appointed under section 4(3) of that Act as the Director of Marine may authorise to carry out any of his or her duties under this Act;

"document" includes —

(*a*) any endorsement;

(*b*) any paper or other material where there is writing;

(*c*) any paper or other material on which there are marks, figures, symbols or perforations that are —

(i) capable of being given a meaning by persons qualified to interpret them; or

(ii) capable of being responded to by a computer, a machine or an electronic device;

(*d*) any article or material from which information is capable of being reproduced with or without the aid of any other article or device; or

(*e*) any electronic record;

"electronic record" has the meaning given by section 2(1) of the Electronic Transactions Act 2010;

"employ" means to engage or use the service of any person, whether under a contract of service or otherwise, with or without remuneration;

"entry" means —

(*a*) in the case of a person arriving by sea, disembarking in Singapore from the vessel in which he or she arrives;

(*b*) in the case of a person arriving by air at an authorised airport, leaving the precincts of such airport;

(*c*) in the case of a person entering by land and proceeding to an immigration control post under section 26 or an authorised train checkpoint under section 25A, leaving the precincts of such post or checkpoint for any purpose other than that of departing from Singapore by an approved route;

(*ca*) in the case of a child born in Singapore on or after 15 January 2005 who is not a citizen of Singapore, his or her birth in Singapore; and

(*d*) in any other case, any entry into Singapore by land, sea or air,

but shall not include in any case an entry made for the purpose of complying with this Act or an entry, expressly or impliedly, sanctioned by an immigration officer for the purpose of any enquiry or detention under the provisions of this Act;

"entry permit" means a permit issued under section 10;

[Act 31 of 2023 wef 01/12/2025]

"harbour" means to give food or shelter, and includes the act of assisting a person in any way to evade apprehension;

"immigration control post" means a post established as such by the Controller at a place declared to be an immigration control post under section 5;

"immigration depot" means any place designated by the Controller for the examination, inspection or detention of persons under this Act or any other written law;

[Act 13 of 2024 wef 09/04/2024]

"immigration officer" means any person appointed under section 3;

"immigration signal" means such signal as may be prescribed for vessels which arrive in Singapore;

"leave" means —

(*a*) in the case of a person leaving Singapore by sea, embarking in Singapore on a vessel which is about to leave Singapore and remaining on board such vessel at the time of its departure for any place outside Singapore;

(*b*) in the case of a person leaving Singapore by air, boarding an aircraft in Singapore which is about to depart from Singapore;

(*c*) in the case of a person leaving Singapore by land —

(i) boarding and remaining in a train or a bus which is about to leave Singapore; or

(ii) departing from an authorised point of departure by any other mode of land transport or on foot, for any place outside Singapore; or

[Act 31 of 2023 wef 31/07/2025]

(*d*) in the case of a vessel, an aircraft, a train or a bus leaving Singapore by sea, air or land (as the case may be), departing from any authorised departing place in Singapore by sea, or from any authorised airport, authorised train checkpoint or authorised point of departure in Singapore, for any place outside Singapore;

[Act 31 of 2023 wef 31/07/2025]

"master" —

(*a*) in relation to a vessel, means any person (except a pilot or harbour master) having for the time being control or charge thereof;

(*b*) in relation to an aircraft, means the captain thereof;

[Act 31 of 2023 wef 31/07/2025]

(*c*) in relation to a train, means the driver of the train or any person having for the time being control or charge thereof; or

[Act 31 of 2023 wef 31/07/2025]

(*d*) in relation to a bus, means the driver of the bus;

[Act 31 of 2023 wef 31/07/2025]

"non-citizen" means any person who is not a citizen of Singapore;

"occupier", in relation to any premises or place, includes —

(*a*) the person having the charge, management or control of either the whole or part of the premises or place, either on the person's own account or as an agent; and

(*b*) a contractor who is carrying out building operations or construction works at the premises or place on behalf of some other person;

"omnibus" means a bus which is used on a scheduled service and in which passengers are charged separate and distinct fares,

and in respect of which a public service vehicle licence is in force under Part 5 of the Road Traffic Act 1961 (or an equivalent licence is in force in Malaysia) authorising the use of the bus as an omnibus;

[Act 31 of 2023 wef 31/07/2025]

"pass" means a pass issued under the regulations entitling the holder thereof to remain, or enter and remain, temporarily in Singapore;

"passenger" means any person carried in a vessel, an aircraft, a train or a bus, other than the members of the crew;

[Act 31 of 2023 wef 31/07/2025]

"permanent resident of Singapore" means the holder of a valid entry permit;

[Act 31 of 2023 wef 01/12/2025]

"permit" includes an entry permit and a re-entry permit;

"personal identifier" means any of the identifiers specified in the Schedule (including any in digital form);

"prohibited immigrant" means any person who is a prohibited immigrant as defined in section 8;

"re-entry permit" means a permit issued under section 11;

[Act 31 of 2023 wef 31/12/2024]

"regulations" means regulations made under this Act;

"seaman" includes the master and any person carried in a vessel as a bona fide member of the staff employed in the operation or service of the vessel and, if the vessel has articles, entered on the articles;

"Singapore visa" means a Singapore visa granted under Part 2A;

"stowaway" means a person who is secreted in a vessel, an aircraft, a train or a bus without the consent of the master or other person in charge of the vessel, aircraft, train or bus and includes such a person who is arriving in or departing from Singapore on board any vessel, aircraft, train or bus without

the consent of the master or other person in charge of the vessel, aircraft, train or bus;

[Act 31 of 2023 wef 31/07/2025]

"through passenger" means any passenger who arrives in Singapore by a vessel, an aircraft or a train and who is continuing his or her journey in the same vessel, aircraft or train to a place outside Singapore;

"transportation company" means any government, municipality, body corporate, or organisation, firm or person carrying or providing for the transit of passengers, whether by vessel, aircraft, train, bus or otherwise, and includes any 2 or more such transporting companies co-operating in the business of carrying passengers;

[Act 31 of 2023 wef 31/07/2025]

"vehicle" means any vehicle whether mechanically propelled or otherwise;

"vessel" includes any ship or boat or other description of floating craft used in navigation, and includes any tackle, equipment, book, document, goods, cargo or things carried therein or thereon.

[18/2012]

Appointment and powers of Controller and immigration officers

3.—(1) The Minister may appoint a Controller of Immigration and such number of immigration officers as the Minister may consider necessary for the proper carrying out of the provisions of this Act.

(2) The powers and discretions vested in the Controller under this Act, and the duties required to be discharged by the Controller may, subject to section 4 and to such limitations as the Controller may impose, be exercised and discharged by immigration officers duly authorised by the Controller to act on the Controller's behalf.

Power of Minister to issue directions

4.—(1) The Minister may from time to time give the Controller directions of a general character, and not inconsistent with the provisions of this Act, as to the exercise of the powers and discretions conferred on the Controller by, and the duties required to be discharged by the Controller under, this Act or any regulations or orders made under this Act, in relation to all matters which appear to the Minister to affect the immigration policy of Singapore.

(2) The Controller must give effect to all directions given under subsection (1).

PART 2

ENTRY INTO AND DEPARTURE FROM SINGAPORE

Entry into and departure from Singapore

5.—(1) The Minister may, by notification in the *Gazette*, prescribe approved routes and declare such immigration control posts, landing places, airports, train checkpoints or points of entry, as the Minister may consider to be necessary for the purposes of this Act, to be immigration control posts, authorised landing places, authorised airports, authorised train checkpoints or authorised points of entry, as the case may be.

(1AA) The Minister may, in connection with any treaty specified in the First Schedule to the Cross-Border Railways (Border Control Co-location) Act 2026, prescribe under subsection (1) or (3) (as the case may be) an area outside Singapore as an authorised point of entry, an authorised point of departure or an immigration control post for the purposes of this Act.

[Act 16 of 2026 wef 30/09/2026]

(1A) In declaring under subsection (1) any place to be an immigration control post, a landing place or an authorised point of entry, the Minister may specify that it or any part of the place is to be an immigration control post, a landing place or an authorised place of entry generally only for a fixed period or for fixed periods of time in

any day, or only for the separate and exclusive immigration clearance of a particular person or class of persons.

[18/2012]

(2) A person must not, unless compelled by accident or other reasonable cause, enter or attempt to enter Singapore except at an authorised landing place, airport, train checkpoint or point of entry.

(3) The Minister may, by notification in the *Gazette*, prescribe approved routes and declare such immigration control posts, places of embarkation, authorised airports, authorised train checkpoints, authorised departing places or authorised points of departure, as the case may be.

(3A) In declaring under subsection (3) any place to be an authorised departing place or an authorised point of departure, the Minister may specify that it or any part of the place is to be an authorised departing place or an authorised point of departure generally only for a fixed period or for fixed periods of time in any day, or only for the separate and exclusive immigration clearance of a particular person or class of persons.

[18/2012]

(4) A person must not, unless compelled by accident or other reasonable cause, leave or attempt to leave Singapore except at an authorised place of embarkation, airport, train checkpoint, departing place or point of departure.

(5) Any person who contravenes subsection (2) or (4) shall be guilty of an offence.

(6) Without affecting subsection (1A) or (3A), where upon the application of any person (called in this section the applicant), any place or any part of that place is declared under subsection (1) or (3) (as the case may be) to be an immigration control post, a landing place, an authorised point of entry or an authorised departing place or authorised point of departure for the separate and exclusive immigration clearance of the applicant, or a particular person or class of persons associated with the applicant, the Controller may, with the approval of the Minister, require the applicant to pay to the Controller a rate, at such intervals and at such amount or rate as may

be prescribed, for or in connection with immigration clearance performed by immigration officers at that place or part thereof.

[18/2012]

(7) The number of immigration officers to be deployed at any immigration control post, landing place, authorised point of entry, authorised departing place or authorised point of departure mentioned in subsection (6) is to be determined at the Controller's discretion.

[18/2012]

(8) In this section, unless the context otherwise requires —

"immigration clearance", in relation to any person, includes refusing the person entry into Singapore or exit from Singapore;

"separate and exclusive immigration clearance" includes immigration clearance carried out only during a particular period or periods in a day for a particular person or class of persons.

[18/2012]

Person entering or leaving Singapore to produce passport, etc.

5A.—(1) Subject to subsections (1A) and (2), every person, whether a citizen of Singapore or a non-citizen, who is arriving in Singapore (by air, sea or land) from a place outside Singapore, or is leaving Singapore (by air, sea or land) to a place outside Singapore, must present to an immigration officer or an automated clearance system (if available) at the authorised airport, authorised landing place, authorised train checkpoint, authorised point of entry, authorised departing place or authorised point of departure, as the case may be —

(*a*) if the person is a citizen of Singapore (whether or not the person is also the national of a foreign country) — the person's Singapore passport that is valid, and any other prescribed evidence of the person's identity and Singapore citizenship; or

[Act 31 of 2023 wef 31/12/2024]

(*b*) if the person is a non-citizen —

(i) the person's foreign passport or other foreign travel document that is valid, and such other evidence of the person's identity as the immigration officer or the automated clearance system (as the case may be) may require; and

[Act 31 of 2023 wef 31/12/2024]

(ii) where a Singapore visa is required by section 9B, evidence of a Singapore visa that is in effect and is held by the person.

[Act 31 of 2023 wef 31/12/2024]

(1A) Despite an automated clearance system being made available to a person mentioned in subsection (1), the person may be required by an immigration officer or the automated clearance system to appear before an immigration officer for immigration clearance.

[Act 31 of 2023 wef 31/12/2024]

(1B) To avoid doubt, a person may be required under subsection (1A) to appear before an immigration officer for immigration clearance even after the person has used an automated clearance system for immigration clearance.

[Act 31 of 2023 wef 31/12/2024]

(1C) If a person mentioned in subsection (1) is required under subsection (1A) to appear before an immigration officer for immigration clearance, the person must present to the immigration officer —

(*a*) in the case of a citizen of Singapore (whether or not the person is also the national of a foreign country) — the person's Singapore passport that is valid, and any prescribed evidence of the person's identity and Singapore citizenship; or

(*b*) in the case of a non-citizen —

(i) the person's foreign passport or other foreign travel document that is valid, and such other evidence of the person's identity as the immigration officer may require; and

(ii) where a Singapore visa is required by section 9B, evidence of a Singapore visa that is in effect and is held by the person.

[Act 31 of 2023 wef 31/12/2024]

(2) The immigration officer may waive —

(*a*) the requirements of a passport or travel document if the person is a citizen of Singapore and in prescribed circumstances; or

(*b*) the requirements of a passport, travel document or Singapore visa in the case of any person entering Singapore from a place outside Singapore and holding a valid entry permit, re-entry permit or certificate of status issued in accordance with this Act.

(3) Any person who contravenes subsection (1) or (1C) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[Act 31 of 2023 wef 31/12/2024]

(4) Subsections (1) and (1A) do not apply to such categories of persons as the Minister may prescribe.

[Act 31 of 2023 wef 31/12/2024]

(5) In this section —

"automated clearance system" means an automated identification processing system for the immigration clearance of persons registered in the system;

"immigration clearance" has the meaning given by section 5(8).

[Act 31 of 2023 wef 31/12/2024]

Matters relating to child prevented from leaving or being taken out of Singapore

5AA.—(1) Subsection (2) applies when —

(*a*) a court order is issued restraining any parent of a child, or any other person, from taking the child out of Singapore;

(*b*) the Controller is notified of the court order; and

(*c*) pursuant to the court order, an immigration officer prevents the child from leaving or being taken out of Singapore.

(2) An immigration officer may do any one or more of the following in relation to the child:

(*a*) inform a specified person for the child;

(*b*) keep the child in an authorised area until any of the following persons accompanies the child out of the authorised area (but without leaving Singapore):

(i) the specified person who is informed under paragraph (*a*), or a person authorised by that specified person;

(ii) a police officer;

(*c*) if the child is kept in an authorised area under paragraph (*b*) — allow any person travelling with the child to remain with the child in the authorised area.

(3) No liability shall lie personally against any immigration officer who, acting in good faith and with reasonable care, does or omits to do anything —

(*a*) in compliance or purported compliance with a court order mentioned in subsection (1); or

(*b*) in the exercise or purported exercise of a power under subsection (2).

(4) In this section, "specified person", for a child, means —

(*a*) the child's parent; or

(*b*) a person who is lawfully appointed by deed or will or by the order of a competent court to be the guardian of the child.

[Act 31 of 2023 wef 31/12/2024]

Facilities at authorised areas

5B.—(1) The Minister may, by written notice, require the owner or occupier of any premises within which an authorised area is or is to be

located (called in this section the relevant owner or occupier), but not the Government —

(*a*) to provide and maintain in the authorised area, at the relevant owner's or occupier's cost, such facilities and resources as the Minister considers necessary for the proper, secure and efficient functioning of the authorised area, including providing such facilities to the immigration officers whose duties require their presence within or at the perimeter of the authorised area; or

(*b*) to permit the establishment of immigration offices within the authorised area.

[18/2012]

(2) The Minister may give to the relevant owner or occupier such written directions as may be necessary —

(*a*) to ensure compliance with the provisions of this Act and the regulations; or

(*b*) for the proper, secure and efficient functioning of the authorised area.

[18/2012]

(3) The relevant owner or occupier must comply with the written notice or direction served or given to the relevant owner or occupier under subsection (1) or (2).

[18/2012]

(4) Any relevant owner or occupier who or which fails to comply with subsection (3) shall be guilty of an offence and shall be liable on conviction to a fine of not less than $100,000 and not more than $200,000 and, in the case of a continuing offence, to a further fine not exceeding $2,000 for every day or part of a day during which the offence continues after conviction.

[18/2012]

(5) Where a body corporate is guilty of an offence under subsection (4) and that offence is proved to have been committed with the authority, consent or connivance of any director, manager, secretary or other similar officer of the body corporate or of any person purporting to act in any such capacity, he or she, as well as the

body corporate, shall each be guilty of that offence and shall each be liable to be proceeded against and punished accordingly.

[18/2012]

(6) In this section, "owner" means any person who has an estate or interest in the premises and whose permission to enter the premises is needed by another before that other may enter the premises.

[18/2012]

Control of entry into and departure from Singapore

6.—(1) A person, other than a citizen of Singapore, must not enter or attempt to enter Singapore unless —

(*a*) he or she is in possession of a valid entry permit or re-entry permit lawfully issued to him or her under section 10 or 11;

(*b*) his or her name is endorsed upon a valid entry permit or re-entry permit in accordance with section 12, and he or she is in the company of the holder of that permit;

(*c*) he or she is in possession of a valid pass lawfully issued to him or her to enter Singapore; or

(*d*) he or she is exempted from this subsection by an order made under section 56.

(2) Every person departing from Singapore, other than a citizen of Singapore or a person exempted from this subsection by an order made under section 56, must, if so required by an immigration officer, complete an embarkation form and submit it for examination by that officer at the time he or she leaves Singapore.

[18/2012]

(3) Any person who contravenes subsection (1) or (2) shall be guilty of an offence and —

(*a*) in the case of an offence under subsection (1), shall on conviction be punished with imprisonment for a term not exceeding 6 months and shall also be punished with caning with not less than 3 strokes, or where by virtue of section 325(1)(*a*) or (*b*) of the Criminal Procedure Code 2010 he or she is not punishable with caning, he or she

shall, in lieu of caning, be punished with a fine not exceeding $6,000;

[Act 31 of 2023 wef 31/12/2024]

(*b*) in the case of an offence under subsection (2), shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[15/2010]

(4) In any proceedings for an offence under subsection (1), it is presumed, until the contrary is proved, that the defendant attempted to enter Singapore in contravention of subsection (1)(*c*) if the defendant was found within the waters of the port and it is proved to the satisfaction of the court that —

(*a*) he or she was unable, or refused, to produce when requested to do so by a police officer or an immigration officer a valid passport or other valid travel document issued by the competent authority of any country;

[Act 31 of 2023 wef 31/12/2024]

(*b*) he or she has no visible means of subsistence; or

(*c*) he or she had taken precautions to conceal his or her identity or presence from any police officer or immigration officer.

(5) In this section, "port" means any place declared to be a port under section 3 of the Maritime and Port Authority of Singapore Act 1996.

Non-citizens born in Singapore

6A.—(1) A child who —

(*a*) is born in Singapore on or after 15 January 2005; and

(*b*) is not a citizen of Singapore at the time of his or her birth,

is deemed to be issued with a special pass authorising him or her to remain in Singapore.

(2) A special pass mentioned in subsection (1) is valid for 42 days from the date of the birth of the child and may be extended for such period as the Controller thinks fit.

(3) An application to renew a special pass referred to in subsection (1) —

(*a*) may be made by —

(i) a specified person for a child mentioned in that subsection; or

(ii) any person allowed by the Controller to make the application; and

[Act 31 of 2023 wef 31/12/2024]

(*b*) must be in such form as the Controller may determine.

(4) Upon an application made under subsection (3), the Controller may extend the special pass or issue the child with such permit or other pass as the Controller thinks fit.

(5) Every specified person for a child mentioned in subsection (1) must ensure that the child does not remain in Singapore —

(*a*) after the expiry or cancellation of the special pass for the child; or

(*b*) if a permit or pass has been issued for the child under subsection (4) — after the expiry or cancellation of the permit or pass.

[Act 31 of 2023 wef 31/12/2024]

(6) Any person who, without reasonable cause, contravenes subsection (5) shall be guilty of an offence.

[Act 31 of 2023 wef 31/12/2024]

(7) In this section, "specified person", for a child, means —

(*a*) in the case of a legitimate child — the father of the child; or

(*b*) in the case of any child —

(i) the mother of the child; or

(ii) a person who is lawfully appointed by deed or will or by the order of a competent court to be the guardian of the child.

[Act 31 of 2023 wef 31/12/2024]

Right of entry

7.—(1) A citizen of Singapore is entitled to enter Singapore without having obtained a permit or pass in that behalf under this Act.

(2) The burden of proof that any person is a citizen of Singapore shall lie upon that person.

Prohibited immigrants

8.—(1) Any person, not being a citizen of Singapore, who is a member of any of the prohibited classes as defined in subsection (3) or who, in the opinion of the Controller, is a member of any of the prohibited classes, is a prohibited immigrant.

(2) Subject to any exemption granted under section 56 —

(*a*) a prohibited immigrant who is a member of the prohibited class defined in subsection (3)(*o*) must not enter Singapore; and

(*b*) any other prohibited immigrant must not enter Singapore, unless he or she is in possession of a valid pass in that behalf issuable to a prohibited immigrant under the regulations.

(3) The following persons are members of the prohibited classes:

(*a*) any person who is unable to show that he or she has the means of supporting himself or herself and his or her dependants (if any) or that he or she has definite employment awaiting him or her, or who is likely to become a pauper or a charge on the public;

(*b*) any person suffering from a contagious or infectious disease which makes his or her presence in Singapore dangerous to the community;

(*ba*) any person suffering from Acquired Immune Deficiency Syndrome or infected with the Human Immunodeficiency Virus;

(*c*) any person desiring to enter Singapore who refuses to submit to an examination after being required to do so under section 29(1);

(*d*) any person who —

(i) has been convicted in any country of an offence for which a sentence of imprisonment has been passed for any term;

[Act 31 of 2023 wef 31/12/2024]

(ii) has not received a free pardon; and

(iii) by reason of the circumstances connected with that conviction is deemed by the Controller to be an undesirable immigrant;

(*e*) any prostitute or any person who is living on or receiving or who, prior to entering Singapore, lived on or received the proceeds of prostitution;

(*f*) any person who procures or attempts to bring into Singapore prostitutes or women or girls for the purpose of prostitution or other immoral purpose;

(*g*) vagrants or habitual beggars;

(*h*) any person whose entry into Singapore is, or at the time of his or her entry was, unlawful under this Act or any other written law for the time being in force;

(*i*) any person who believes in or advocates the overthrow by force or violence of the Government or of any established government or of constituted law or authority or who disbelieves in or is opposed to established government, or who advocates the assassination of public officials, or who advocates or teaches the unlawful destruction of property;

(*j*) any person who is a member of or affiliated with any organisation entertaining or teaching disbelief in or opposition to established government or advocating or teaching the duty, necessity or propriety of the unlawful assaulting or killing of any officer or officers, either of specific individuals or officers generally, of the Government or of any established government, because of his, her or their official character, or advocating or teaching the unlawful destruction of property;

(*k*) any person who, in consequence of information received from any source or from any government through official or diplomatic channels, is considered by the Minister to be an undesirable immigrant;

(*l*) any person who has been removed from any country by the competent authority of that country on repatriation for any reason whatever and who, by reason of the circumstances connected therewith, is considered by the Controller to be an undesirable immigrant;

[Act 31 of 2023 wef 31/12/2024]

(*m*) any person who, being required by any written law for the time being in force to be in possession of valid travel documents, is not in possession of those documents or is in possession of forged or altered travel documents or travel documents which do not fully comply with that written law;

(*n*) the family and dependants of a prohibited immigrant; and

(*o*) any person prohibited by an order made under section 9 from entering Singapore, unless the person is exempted from this paragraph by an order made under section 56.

[18/2012]

[Act 31 of 2023 wef 31/12/2024]

(4) The burden of proof that any person seeking to enter Singapore is not a prohibited immigrant shall lie upon that person.

(4A) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(5) Subject to any exemption granted under section 56, if any prohibited immigrant enters Singapore otherwise than in accordance with a valid pass lawfully issued to him or her, he or she shall be guilty of an offence.

(6) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(7) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

Power to prohibit or limit entry into Singapore

9.—(1) The Minister may, by order —

(*a*) where the Minister thinks it expedient to do so in the interests of public security or public health, or by reason of any economic, industrial, social, educational or other conditions in Singapore —

(i) prohibit, either for a stated period or permanently, the arrival in, or entry or re-entry into, Singapore of any person or class of persons;

[Act 31 of 2023 wef 31/12/2024]

(ii) limit the number of persons of any class who may arrive in, or enter or re-enter, Singapore within any period specified in the order; or

[Act 31 of 2023 wef 31/12/2024]

(iii) limit the period during which any person or class of persons entering or re-entering Singapore may remain therein; or

[Act 31 of 2023 wef 31/12/2024]

(*b*) prohibit the entry into Singapore of passengers brought to Singapore by any transportation company which refuses or neglects to comply with the provisions of this Act.

(1A) No order made under subsection (1)(*a*), except an order made in the interests of public security or public health, applies to any person who is outside Singapore at the time when the order is made and who is in possession of a valid re-entry permit or pass lawfully issued to him or her.

[Act 31 of 2023 wef 31/12/2024]

(2) An order made under subsection (1) does not apply to a citizen of Singapore.

[Act 31 of 2023 wef 31/12/2024]

(3) Every order made under subsection (1)(*a*) which relates to a class of persons, except an order made in the interests of public security or public health, must be presented to Parliament as soon as possible after publication in the *Gazette* and if a resolution is passed within the next 3 months after the order is so presented disapproving the order or any part thereof, the order or such part thereof (as the case

may be) ceases to have effect but without affecting the validity of anything previously done thereunder.

[Act 31 of 2023 wef 31/12/2024]

(4) Every order made under subsection (1), unless otherwise expressed therein, comes into force on the date of the making of the order, and must be published in the *Gazette*.

(5) Any person who arrives in, enters, re-enters or remains in Singapore in contravention of any order made under subsection (1) shall be guilty of an offence and shall on conviction be punished with imprisonment for a presumptive minimum term of not less than 2 years and not more than 4 years and shall also be liable to a fine not exceeding $6,000.

[15/2019]

[Act 31 of 2023 wef 31/12/2024]

(6) Where a person, who has been previously convicted of any offence which is punishable with imprisonment for a term of not less than 3 years, commits an offence under subsection (5) by the use of a passport or other travel document which bears a name different from that stated in the order made against him or her under subsection (1), he or she shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 5 years and shall also be liable to a fine not exceeding $10,000 and to caning.

(7) If a person convicted of an offence under subsection (6) cannot be caned because section 325(1)(*a*) or (*b*) of the Criminal Procedure Code 2010 applies, the court may, in addition to any other punishment to which the person is sentenced for that offence, impose a fine not exceeding $6,000 in lieu of the caning which the court could, but for that provision, have ordered for that offence.

[Act 31 of 2023 wef 31/12/2024]

No-boarding directive

9AA.—(1) Subject to subsections (2) and (3), the Controller may issue a directive (called in this section no-boarding directive) that a person (called in this section the subject person) who intends to board (whether as a passenger or a member of the crew, and whether for the purpose of entering or transiting through Singapore) an in-bound conveyance must not board the in-bound conveyance if —

(*a*) the subject person is a prohibited immigrant;

(*b*) an order is made under section 9(1)(*a*)(i) prohibiting the subject person (or any class of persons to which the subject person belongs) from arriving in, or entering or re-entering, Singapore;

(*c*) an order is made under section 9(1)(*a*)(ii) limiting the number of persons of any class who may arrive in, or enter or re-enter, Singapore and the subject person belongs to that class; or

(*d*) the Controller is satisfied that —

(i) the subject person poses, or is likely to pose, a risk to the safety or health of persons in Singapore, or of persons in the in-bound conveyance;

(ii) the presence of the subject person in Singapore would be undesirable; or

(iii) the subject person would not be issued a permit or pass to enter Singapore.

(2) The Controller must not issue a no-boarding directive —

(*a*) against a citizen of Singapore;

(*b*) on the ground mentioned in subsection (1)(*d*)(ii) against a person who holds a valid permit or pass issued to that person under this Act or the regulations; or

(*c*) on the ground mentioned in subsection (1)(*d*)(iii) against a person who intends to board an in-bound conveyance for the purpose of transiting through Singapore.

(3) The Controller may issue a no-boarding directive on the ground mentioned in subsection (1)(*b*) or (*c*) against a person who intends to board an in-bound conveyance for the purpose of transiting through Singapore only if the order mentioned in that provision prohibits or limits arrival in Singapore.

(4) If the Controller issues a no-boarding directive against the subject person, the Controller may give notice of the no-boarding directive to any one or more of the following persons:

(*a*) the master of the in-bound conveyance;

(*b*) the operator of the in-bound conveyance;

(*c*) the owner of the in-bound conveyance;

(*d*) the agent of the in-bound conveyance;

(*e*) the charterer of the in-bound conveyance.

(5) The Controller may designate an electronic service for the giving of notices under subsection (4) in respect of all or any class of in-bound conveyances.

(6) The Controller is not required to serve the no-boarding directive on the subject person, or otherwise inform the subject person of the issue of the no-boarding directive.

(7) If the in-bound conveyance arrives in Singapore with the subject person on board —

(*a*) every person who is given notice of the no-boarding directive under subsection (4) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000; and

(*b*) any related individual for the in-bound conveyance who, despite knowing that a no-boarding directive has been issued against the subject person, enables (whether by act or omission) the subject person to board the in-bound conveyance shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 6 months or to both.

(8) The offence under subsection (7)(*a*) is a strict liability offence.

(9) In this section —

"in-bound conveyance" means a vessel, an aircraft, a train or a bus (excluding an omnibus) that is bound for Singapore (whether or not as a final destination);

"related individual", for an in-bound conveyance, means —

(*a*) the master of the conveyance; or

(*b*) an officer or employee of the operator, owner, agent or charterer of the in-bound conveyance.

[Act 31 of 2023 wef 01/12/2025]

PART 2A

SINGAPORE VISAS FOR NON-CITIZENS

Singapore visas

9A.—(1) Subject to the provisions of this Act, the Controller may grant a non-citizen permission, to be known as a Singapore visa, to travel to Singapore (for the purpose of seeking entry under a valid permit or pass).

[Act 31 of 2023 wef 31/12/2024]

(2) Without limiting subsection (1), a Singapore visa may grant the holder of the visa permission to travel to Singapore during a specified period only.

[Act 31 of 2023 wef 31/12/2024]

Visas essential for travel

9B.—(1) Subject to subsection (2), a non-citizen must not travel to Singapore (for the purpose of seeking entry under a valid permit or pass) without a Singapore visa that is in effect.

[Act 31 of 2023 wef 31/12/2024]

(2) Subsection (1) does not apply to a non-citizen in relation to travel to Singapore if the travel is by a non-citizen who holds and produces a valid passport from a country that is approved by the Minister.

[Act 19 of 2025 wef 05/12/2025]

Effect of Singapore visa

9C.—(1) A Singapore visa that is in effect is not a pass or other permission for, and does not confer any right on, the holder to enter Singapore.

(2) Subject to section 5(2) and any regulations made under section 55, the holder of a Singapore visa that is in effect must enter Singapore at an authorised airport, authorised landing place, authorised train checkpoint or authorised point of entry.

PART 3

ENTRY AND RE-ENTRY PERMITS

Entry permits

10.—(1) A non-citizen who wishes to be a permanent resident of Singapore must apply for an entry permit in such form and manner as the Controller requires.

[Act 31 of 2023 wef 01/12/2025]

(1A) An entry permit authorises the holder of the permit —

(*a*) in the case where the entry permit is issued when the holder is outside Singapore — to enter Singapore once within the period specified in the conditions of the entry permit; and

(*b*) in any case where the holder has entered or is in Singapore — to remain in Singapore.

[Act 31 of 2023 wef 01/12/2025]

(2) Upon an application made under subsection (1) and on payment of the prescribed fee, the Controller may issue to the applicant an entry permit in the prescribed form and must, if the applicant is required by section 9B(1) to have a Singapore visa, grant a Singapore visa under section 9A(1) to the applicant on the production by him or her of his or her passport or other travel document and on payment of the prescribed fee, and the visa remains valid until the cancellation of the entry permit issued to the applicant.

[Act 31 of 2023 wef 31/12/2024]

(3) The Controller may —

(*a*) at the time of issuing an entry permit under subsection (2), impose any condition as the Controller thinks fit; or

(*b*) at any time after the issue of an entry permit under subsection (2), vary or revoke any condition to which the entry permit is subject or impose any condition thereto.

(3A) To avoid doubt, the power of the Controller to vary, revoke or impose any condition under subsection (3)(*b*) may be exercised whether or not the Controller is entitled to cancel the entry permit under this Act.

(4) The Controller must —

(*a*) give notice of any variation or revocation of any condition of, or imposition of any condition on, an entry permit under subsection (3)(*b*), to the holder of the entry permit; and

(*b*) specify in the notice the date on which the variation, revocation or imposition of the condition takes effect.

[Act 31 of 2023 wef 31/12/2024]

(4A) If the Controller varies, revokes or imposes any condition under subsection (3)(*b*) for a class of entry permit holders —

(*a*) the Controller may, where the Controller assesses that it is not practicable to give notice to each entry permit holder in that class under subsection (4), publish the variation, revocation or imposition of the condition, and the date mentioned in subsection (4)(*b*), on a prescribed website or in the *Gazette*; and

(*b*) the requirements of subsection (4) are taken to be satisfied upon such publication.

[Act 31 of 2023 wef 31/12/2024]

(5) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(6) Any entry permit issued by the Controller before 15 January 2005 to any person who was in Singapore at the time he or she ceased to be a citizen of Singapore and who continued to remain in Singapore is deemed to have been validly issued and continues in force until it is cancelled.

Re-entry permits

11.—(1) Subject to subsection (1A), a permanent resident of Singapore may at any time apply for a re-entry permit.

[Act 31 of 2023 wef 01/12/2025]

(1A) Subject to subsection (1D), a permanent resident of Singapore who is outside Singapore without a valid re-entry permit must apply for a re-entry permit within the prescribed period.

[Act 31 of 2023 wef 01/12/2025]

(1B) An application for a re-entry permit must be made in such form and manner as the Controller requires.

[Act 31 of 2023 wef 01/12/2025]

(1C) The obligation of a permanent resident of Singapore mentioned in subsection (1A) to apply for a re-entry permit under that subsection continues even if the permanent resident re-enters Singapore under a pass during the prescribed period mentioned in that subsection.

[Act 31 of 2023 wef 01/12/2025]

(1D) Subsection (1A) does not apply to a permanent resident of Singapore mentioned in that subsection if —

(*a*) the permanent resident has applied for a re-entry permit before the first day of the prescribed period mentioned in that subsection; and

(*b*) the application is pending on that day, or is rejected on or after that day.

[Act 31 of 2023 wef 01/12/2025]

(1E) The first day of the prescribed period mentioned in subsection (1A) for a permanent resident of Singapore is —

(*a*) in the case where the permanent resident leaves Singapore before the date of commencement of section 13(*a*) of the Immigration (Amendment) Act 2023 and remains outside Singapore without a valid re-entry permit on that date — that date; or

(*b*) in any other case — the date on which the permanent resident is first outside Singapore without a valid re-entry permit.

[Act 31 of 2023 wef 01/12/2025]

(1F) The first day and last day of the prescribed period mentioned in subsection (1A) includes a Sunday or public holiday in Singapore.

[Act 31 of 2023 wef 01/12/2025]

(2) Upon an application made for a re-entry permit and on payment of the prescribed fee, the Controller may issue to the applicant a re-entry permit in the prescribed form and must, if the applicant is required by section 9B(1) to have a Singapore visa, grant a Singapore visa under section 9A(1) to the applicant on the production by him or her of his or her passport or other travel document and on payment of

the prescribed fee and the visa remains valid until the expiry or cancellation of the re-entry permit issued to the applicant.

[18/2012]

[Act 31 of 2023 wef 31/12/2024]

(2A) To avoid doubt, the Controller may refuse to issue a re-entry permit or a pass to a permanent resident of Singapore.

[Act 31 of 2023 wef 01/12/2025]

(3) The Controller may —

(*a*) at the time of issuing a re-entry permit under subsection (2), impose any condition as the Controller thinks fit; or

(*b*) at any time after the issue of a re-entry permit under subsection (2), vary or revoke any condition to which the re-entry permit is subject or impose any condition thereto.

[18/2012]

(4) To avoid doubt, the power of the Controller to vary, revoke or impose any condition under subsection (3)(*b*) may be exercised whether or not the Controller is entitled to cancel the re-entry permit under this Act.

[18/2012]

(5) The Controller must —

(*a*) give notice of any variation or revocation of any condition of, or imposition of any condition on, a re-entry permit under subsection (3)(*b*), to the holder of the re-entry permit; and

(*b*) specify in the notice the date on which the variation, revocation or imposition of the condition takes effect.

[Act 31 of 2023 wef 31/12/2024]

(5A) If the Controller varies, revokes or imposes any condition under subsection (3)(*b*) for a class of re-entry permit holders —

(*a*) the Controller may, where the Controller assesses that it is not practicable to give notice to each re-entry permit holder in that class under subsection (5), publish the variation, revocation or imposition of the condition, and the date mentioned in subsection (5)(*b*), on a prescribed website or in the *Gazette*; and

(*b*) the requirements of subsection (5) are taken to be satisfied upon such publication.

[Act 31 of 2023 wef 31/12/2024]

(6) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

Validity of re-entry permit, etc.

11AA.—(1) The Controller may, at the time of issuing a re-entry permit, specify its validity period.

(2) A person who is issued a re-entry permit is authorised to re-enter Singapore at any one or more times during the validity period of the re-entry permit.

(3) A re-entry permit issued to a person ceases to be valid when —

(*a*) the validity period of the re-entry permit expires;

(*b*) the re-entry permit is cancelled under this Act; or

(*c*) the entry permit issued to that person is cancelled under this Act,

whichever occurs first.

[Act 31 of 2023 wef 31/12/2024]

Persons ceasing to be citizens of Singapore

11A.—(1) Subject to subsection (4) and section 33A(1), any person in Singapore who, on or after 15 January 2005, ceases to be a citizen of Singapore must not remain in Singapore for more than 24 hours after the date on which the person ceases to be a citizen of Singapore unless the person has been issued with a permit or a pass authorising the person to remain in Singapore.

[Act 31 of 2023 wef 31/12/2024]

(2) Any person who, on or after 15 January 2005, ceases to be a citizen of Singapore and who wishes to remain in Singapore may make an application to the Controller in the prescribed manner for a permit or a pass authorising the person to remain in Singapore.

(3) Upon an application made under subsection (2) and on payment of the prescribed fee, the Controller may issue to the applicant a permit or a pass authorising the applicant to remain in Singapore.

(4) Subject to section 33A(1), any person who applies for a permit or a pass under subsection (2) before the expiry of the time specified in subsection (1) —

(*a*) may remain in Singapore pending the determination by the Controller of the application; and

(*b*) subject to subsection (5), must not remain in Singapore for more than 24 hours after being informed that the person's application for a permit or pass has been rejected.

[Act 31 of 2023 wef 31/12/2024]

(5) Subsection (4)(*b*) does not prevent a person from entering and remaining in Singapore if the person is subsequently issued with a permit or a pass by the Controller authorising the person to enter and remain in Singapore.

(6) Any person who, without reasonable cause, contravenes subsection (1) or (4)(*b*) shall be guilty of an offence and —

(*a*) in the case where he or she remains unlawfully in Singapore for a period not exceeding 90 days, shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 6 months or to both; or

(*b*) in the case where he or she remains unlawfully in Singapore for a period exceeding 90 days, shall on conviction be punished with imprisonment for a term not exceeding 6 months and shall also be punished with caning with not less than 3 strokes, or where by virtue of section 325(1)(*a*) or (*b*) of the Criminal Procedure Code 2010 he or she is not punishable with caning, he or she shall, in lieu of caning, be punished with a fine not exceeding $6,000.

[15/2010]

[Act 31 of 2023 wef 31/12/2024]

Endorsement of names of wife and children on permits, passes and certificates

12. Subject to such conditions as may be prescribed, it is lawful for the Controller, on application made in that behalf in the prescribed

form by the holder of, or by an applicant for, a permit, pass or certificate, to endorse upon the permit, pass or certificate issued to that person the name or names of the wife or child of that person.

Power to make inquiries

13. The Controller may, before the issue of a permit, pass or certificate under this Act or before making any endorsement thereon under section 12, make such inquiries or require the production of such evidence as the Controller may think fit in order to satisfy himself or herself as to the truth of any statement made in the application for the permit, pass or certificate.

Controller's cancellation of and declarations regarding permits and certificates

14.—(1) Where the holder of any permit seeks to enter Singapore accompanied by any child whose name is not endorsed upon that permit under section 12 and who is not otherwise entitled to enter Singapore under the provisions of this Act, the Controller may cancel the permit issued to that person.

(2) Where, upon the arrival in Singapore of any person to whom a permit or certificate has been issued, the Controller is satisfied, as a result of inquiries made under section 24, 25, 25A or 26, or from other information, that the permit or certificate was issued as a result of any false representation or concealment of a material fact, the Controller may cancel the permit or certificate.

(3) Where at any time during the period of validity of any permit or certificate, the Controller is satisfied that the holder of the permit or certificate is a prohibited immigrant, the Controller must cancel the permit or certificate.

(4) Where any person has entered or remains in Singapore by virtue of a permit or certificate, and the Controller is satisfied that —

(*a*) any material statement made in or in connection with the application for the permit or certificate was false or misleading;

(*b*) the person is a prohibited immigrant; or

(*c*) the holder of the permit or certificate has contravened any provision of this Act or the regulations or any condition of the permit or certificate,

[Act 31 of 2023 wef 31/12/2024]

the Controller may cancel the permit or certificate issued to that person, and may declare at any time after the date of the entry or date of the issue of the permit or certificate that the presence of that person in Singapore is unlawful.

(5) If the Controller cancels a person's re-entry permit under subsection (4)(*c*) for the contravention of any condition of the re-entry permit, the Controller may cancel that person's entry permit (whether or not that person has contravened any condition of the entry permit).

[Act 31 of 2023 wef 31/12/2024]

(5A) If the Controller cancels a person's permit or certificate under subsection (2), (3), (4) or (5), or makes a declaration against the person under subsection (4), the Controller must give notice of the cancellation or declaration to the person.

[Act 31 of 2023 wef 31/12/2024]

(6) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

[Act 31 of 2023 wef 31/12/2024]

Automatic cancellation of entry permit

14A.—(1) An entry permit issued to a person is cancelled if —

(*a*) the person is required by section 11(1A) to apply for a re-entry permit within the prescribed period mentioned in that provision, but does not comply with that provision;

(*b*) the person, in compliance with section 11(1A), applies for a re-entry permit within the prescribed period mentioned in that provision, and the Controller rejects the application; or

(*c*) section 11(1A) does not apply to the person by reason of section 11(1D), and the Controller rejects the person's application (mentioned in section 11(1D)) for a re-entry permit.

(2) The cancellation of a person's entry permit under subsection (1) takes effect —

(*a*) for subsection (1)(*a*) — on the date immediately after the last day of the prescribed period mentioned in section 11(1A) for that person; or

(*b*) for subsection (1)(*b*) or (*c*) — on the date immediately after the Controller's rejection of that person's application mentioned in that provision.

[Act 31 of 2023 wef 01/12/2025]

Unlawful entry or presence in Singapore

15.—(1) A person must not remain in Singapore after the cancellation of any permit or certificate, or after the making of a declaration under section 14(4) or after the expiration or notification to him or her, in such manner as may be prescribed, of the cancellation of any pass relating to or issued to him or her unless he or she is otherwise entitled or authorised to remain in Singapore under the provisions of this Act or the regulations.

(2) A person must not remain in Singapore in contravention of section 62.

(3) Any person who contravenes, without reasonable cause, this section shall be guilty of an offence and —

(*a*) in the case where he or she remains unlawfully for a period not exceeding 90 days, shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 6 months or to both;

(*b*) in the case where he or she remains unlawfully for a period exceeding 90 days, shall on conviction be punished with imprisonment for a term not exceeding 6 months and shall also be punished with caning with not less than 3 strokes, or where by virtue of section 325(1)(*a*) or (*b*) of the Criminal Procedure Code 2010 he or she is not punishable with caning, he or she shall, in lieu of caning, be punished with a fine not exceeding $6,000.

[15/2010]

[Act 31 of 2023 wef 31/12/2024]

PART 4

PROCEDURE ON ARRIVAL IN AND DEPARTURE FROM SINGAPORE

Immigration signal

16.—(1) The master of every vessel which arrives in or is about to leave Singapore must hoist the prescribed immigration signal and must exhibit that signal until authorised by an immigration officer to haul it down.

(2) The master of a vessel who contravenes subsection (1) shall be guilty of an offence.

Vessel to stop, proceed to immigration or departure anchorage or other place when ordered

17.—(1) The Controller may, by notification in the *Gazette*, declare any place within the limits of any port to be an immigration anchorage, either for vessels generally or for vessels of a class specified in the notification.

[18/2012]

(2) The master of every vessel which arrives at or is about to leave a port where an immigration anchorage, either for vessels generally or for vessels of a class to which that vessel belongs, has been declared must, subject to any directions given under subsection (4), immediately navigate the vessel to that anchorage and must remain there until an immigration officer gives him or her permission to leave.

(3) The master of every vessel which arrives in or is about to leave Singapore must, if ordered to do so by a police officer or an immigration officer, stop, anchor or tie up the vessel at such place as may be ordered, and must remain there until a police officer or an immigration officer gives him or her permission to leave.

[18/2012]

(4) The master of a vessel who contravenes or, without reasonable cause, fails to comply with this section or any order made or directions given thereunder shall be guilty of an offence.

Aircraft arriving in or departing from Singapore

18.—(1) The captain of every aircraft which arrives in or leaves Singapore must land the aircraft at, or fly the aircraft away from, an authorised airport.

(2) The captain of an aircraft who, without reasonable cause, contravenes subsection (1) shall be guilty of an offence.

Train arriving in or leaving Singapore

18A.—(1) The master of every train which arrives in or leaves Singapore must stop the train at, or drive the train away from, an authorised train checkpoint.

(2) The master of a train who, without reasonable cause, contravenes subsection (1) shall be guilty of an offence.

Vehicles arriving in or leaving Singapore

18B.—(1) The driver of a vehicle who wishes to drive into Singapore must stop the vehicle at an authorised place of embarkation, an authorised point of entry or an immigration control post upon arrival in Singapore.

(2) The driver of a vehicle who wishes to drive out of Singapore must stop the vehicle at an authorised departing place, an authorised point of departure or an immigration control post before leaving Singapore.

(3) The driver of a vehicle who, without reasonable cause, contravenes subsection (1) or (2) shall be guilty of an offence.

Persons not to board or leave vessel until examination completed

19.—(1) Except under and in accordance with any authority granted by an immigration officer, no person other than —

(*a*) the pilot;

(*b*) any Government officer boarding the vessel on duty;

(*c*) the operator, owner, charterer or agent of the vessel; or

[Act 31 of 2023 wef 31/07/2025]

(*d*) a consular officer or an accredited representative of the country to which the vessel belongs,

is to leave or board a vessel arriving in Singapore nor may any person (other than the crew of a vessel carrying any such person) approach within 200 metres of the vessel, until the vessel has been examined by an immigration officer and the immigration signal has been hauled down, or board a vessel departing from Singapore after it has been examined by an immigration officer just before its departure.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and every such person leaving a vessel in contravention of subsection (1) must, if so required by an immigration officer, return immediately to the vessel and remain thereon and the master of the vessel is bound to re-embark that person.

Prohibition on disembarking from or boarding ships without permission of immigration officer

20.—(1) It is the duty of the master and the operator, owner or charterer of every vessel which arrives in Singapore to prevent any person other than a person specified in section 19(1)(*a*), (*b*), (*c*) or (*d*) from disembarking from or boarding the vessel until the disembarkation or boarding has been authorised by an immigration officer, and for that purpose any means reasonably necessary may be used.

[Act 31 of 2023 wef 31/07/2025]

(2) Where any person disembarks from or boards any vessel before being authorised by an immigration officer in that behalf, that person, the master and the operator, owner or charterer of the vessel shall each be guilty of an offence under this section.

[Act 31 of 2023 wef 31/07/2025]

(3) It is no defence to a prosecution under this section that the master, operator, owner or charterer did not permit or do anything to facilitate the disembarkation or boarding of the person.

[Act 31 of 2023 wef 31/07/2025]

(4) It is a good defence to a prosecution under this section that the master, operator, owner or charterer took every reasonable precaution to prevent the disembarkation or boarding of the person.

[Act 31 of 2023 wef 31/07/2025]

(5) The master of the vessel from which any person has disembarked before the disembarkation has been authorised by an immigration officer is bound to re-embark that person and any master refusing to re-embark that person shall be guilty of an offence.

(6) Any person guilty of an offence under this section shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 12 months or to both.

Prohibition of removal of articles before examination

21.—(1) Except with the authority of an immigration officer, no article or thing is to be removed or taken from, or put on board, any vessel until the vessel has been examined by an immigration officer under section 19.

(2) Any person who contravenes subsection (1) shall be guilty of an offence.

Provision of passenger and crew information by master, etc., of vessel arriving in, leaving or due to leave Singapore

22.—(1) The master, operator, owner, agent or charterer of every vessel arriving at any authorised landing place for persons arriving in Singapore by sea from a place outside Singapore or leaving or due to leave from any authorised departing place for persons leaving Singapore by sea to a place outside Singapore must, if required to do so by an immigration officer —

(*a*) within such time, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all the crew who are or will be on board the vessel at the time of its arrival at the authorised landing place or at the time of its departure from the authorised departing place, as the case may be;

[Act 31 of 2023 wef 31/07/2025]

(*b*) produce to the immigration officer (or another immigration officer) for inspection and interrogation every member of the crew as directed (either generally or specifically) by the immigration officer;

[Act 31 of 2023 wef 31/07/2025]

(*c*) furnish to the immigration officer (or another immigration officer) such evidence of identity of each member of the crew within such time and in such form and manner as may be prescribed;

[Act 31 of 2023 wef 31/07/2025]

(*d*) submit to such search of the vessel as may be necessary to establish the presence or absence of other persons on board; and

[Act 31 of 2023 wef 31/07/2025]

(*e*) produce the vessel's papers.

[Act 31 of 2023 wef 31/07/2025]

(*f*) [*Deleted by Act 31 of 2023 wef 31/07/2025*]

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) In the case of vessels carrying passengers, the master, operator, owner, agent or charterer must, in addition, if required to do so by an immigration officer —

(*a*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all passengers who are or will be on board the vessel at the time of its arrival at the authorised landing place or departure from the authorised departing place, as the case may be;

[Act 31 of 2023 wef 31/07/2025]

(*b*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all passengers disembarking in or embarking from Singapore; and

[Act 31 of 2023 wef 31/07/2025]

(*c*) produce to the immigration officer (or another immigration officer) for inspection and interrogation every passenger as directed (either generally or specifically) by the immigration officer.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(3) Before the vessel arrives at the authorised landing place or departs from the authorised departing place (as the case may be), the master, operator, owner, agent or charterer must report to an immigration officer the presence on board of any stowaway, any unauthorised person, or any person proceeding to any country on that person's removal from any other country by the competent authority of that other country.

[Act 31 of 2023 wef 31/07/2025]

(3A) Any person who contravenes subsection (1)(*a*) or (2)(*a*) or (*b*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

[Act 31 of 2023 wef 31/07/2025]

(3B) The offence under subsection (3A) is a strict liability offence.

[Act 31 of 2023 wef 31/07/2025]

(3C) Any person who contravenes subsection (1) (except paragraph (*a*)) or (2)(*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[Act 31 of 2023 wef 31/07/2025]

(3D) Any person who hinders or obstructs any search of a vessel under subsection (1)(*d*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[Act 31 of 2023 wef 31/07/2025]

(4) If any person whose presence has not been reported under subsection (3) is found on board the vessel, the master, operator, owner, agent and charterer of the vessel shall each be guilty of an offence and shall each be liable on conviction to a fine of not less than $5,000 and not more than $10,000 in respect of each such person.

[Act 31 of 2023 wef 31/07/2025]

(5) In any proceedings under this section, the certificate in writing of an immigration officer who boarded or examined any particular vessel to the effect that the vessel carried, on arrival in Singapore, a total number of seamen corresponding in description to the particulars on the identification cards furnished under subsection (1)(*c*) is conclusive proof that the vessel did on arrival carry that number of seamen.

Provision of passenger and crew information in advance by master, etc., of vessel due to arrive in Singapore

22A.—(1) The master, operator, owner, agent or charterer of every vessel which is due to arrive at any authorised landing place for persons arriving in Singapore by sea from a place outside Singapore must, upon being given reasonable prior notice in writing by the Controller to comply with this section —

(*a*) within such time prior to the arrival of the vessel at the authorised landing place, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the Controller a complete and accurate list of all the crew who are or will be on board the vessel at the time of its arrival at the authorised landing place;

[Act 31 of 2023 wef 31/07/2025]

(*b*) within such time prior to the arrival of the vessel at the authorised landing place and in such form and manner as may be prescribed, furnish to the Controller a complete and accurate list of all passengers who are or will be on board the vessel at the time of its arrival at the authorised landing place; and

[Act 31 of 2023 wef 31/07/2025]

(*c*) furnish to the Controller a complete and accurate list of all passengers disembarking in Singapore, containing such particulars regarding one or both of the following:

(i) advance passenger information;

(ii) information recorded in the passenger reservation system for that vessel,

within such time prior to the arrival of the vessel at the authorised landing place and in such form and manner as may be prescribed.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) The Controller may at any time by notice in writing to the master, operator, owner, agent or charterer of a vessel, revoke the notice given to that person under subsection (1).

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(3) Any person who contravenes subsection (1)(*a*), (*b*) or (*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

[Act 31 of 2023 wef 31/07/2025]

(4) The offence under subsection (3) is a strict liability offence.

[Act 31 of 2023 wef 31/07/2025]

Provision of passenger and crew information by captain, etc., of aircraft arriving in, leaving or due to leave Singapore

23.—(1) The captain, operator, owner, agent or charterer of every aircraft arriving at any airport in Singapore from a place outside Singapore or leaving or due to leave any airport in Singapore to a place outside Singapore must, if required to do so by an immigration officer —

(*a*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all passengers who are or will be on board the aircraft at the time of its arrival at the airport or departure from the airport, as the case may be;

[Act 31 of 2023 wef 31/07/2025]

(*b*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all passengers landing in or departing from Singapore;

[Act 31 of 2023 wef 31/07/2025]

(*c*) within such time, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all the crew of the aircraft who are or will be on board the aircraft at the time of its

arrival at the airport or departure from the airport, as the case may be;

[Act 31 of 2023 wef 31/07/2025]

(*d*) produce to the immigration officer (or another immigration officer) for inspection and interrogation every member of the crew and every passenger as directed (either generally or specifically) by the immigration officer; and

[Act 31 of 2023 wef 31/07/2025]

(*e*) submit to such search of the aircraft as may be necessary to establish the presence or absence of other persons on board.

[Act 31 of 2023 wef 31/07/2025]

(*f*) [*Deleted by Act 31 of 2023 wef 31/07/2025*]

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) Before the aircraft arrives at or departs from the airport (as the case may be), the master, operator, owner, agent or charterer must report to an immigration officer the presence on board of any stowaway, any unauthorised person, or any person proceeding to any country on that person's removal from any other country by the competent authority of that other country.

[Act 31 of 2023 wef 31/07/2025]

(2A) Any person who contravenes subsection (1)(*a*), (*b*) or (*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

[Act 31 of 2023 wef 31/07/2025]

(2B) The offence under subsection (2A) is a strict liability offence.

[Act 31 of 2023 wef 31/07/2025]

(2C) Any person who contravenes subsection (1)(*d*) or (*e*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[Act 31 of 2023 wef 31/07/2025]

(2D) Any person who hinders or obstructs any search of an aircraft under subsection (1)(*e*) shall be guilty of an offence and shall be

liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[Act 31 of 2023 wef 31/07/2025]

(3) If any person whose presence has not been reported under subsection (2) is found on board an aircraft, the captain, operator, owner, agent and charterer of the aircraft shall each be guilty of an offence and shall each be liable on conviction to a fine of not less than $5,000 and not more than $10,000 in respect of each such person.

[Act 31 of 2023 wef 31/07/2025]

(4) In any proceedings under this section, the certificate in writing of an immigration officer who boarded or examined any particular aircraft to the effect that the aircraft carried, on arrival in Singapore, a total number of crew corresponding in description to the particulars on the list furnished under subsection (1)(*c*) is conclusive proof that the aircraft did on arrival carry that number of crew.

Provision of passenger and crew information in advance by captain, etc., of aircraft due to arrive in Singapore

23AA.—(1) The captain, operator, owner, agent or charterer of every aircraft which is due to arrive at any airport in Singapore from a place outside Singapore must, upon being given reasonable prior notice in writing by the Controller to comply with this section —

(*a*) within such time prior to the arrival of the aircraft at the airport, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the Controller a complete and accurate list of all the crew of the aircraft who are or will be on board the aircraft at the time of its arrival at the airport;

[Act 31 of 2023 wef 31/07/2025]

(*b*) within such time prior to the arrival of the aircraft at the airport and in such form and manner as may be prescribed, furnish to the Controller a complete and accurate list of all passengers who are or will be on board the aircraft at the time of its arrival at the airport; and

[Act 31 of 2023 wef 31/07/2025]

(*c*) furnish to the Controller a complete and accurate list of all passengers landing in Singapore, containing such particulars regarding one or both of the following:

(i) advance passenger information;

(ii) information recorded in the passenger reservation system for that aircraft,

within such time prior to the arrival of the aircraft at the airport and in such form and manner as may be prescribed.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) The Controller may at any time by notice in writing to the captain, operator, owner, agent or charterer of an aircraft, revoke the notice given to that person under subsection (1).

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(3) Any person who contravenes subsection (1)(*a*), (*b*) or (*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

[Act 31 of 2023 wef 31/07/2025]

(4) The offence under subsection (3) is a strict liability offence.

[Act 31 of 2023 wef 31/07/2025]

Provision of passenger and crew information by master, etc., of train arriving in, leaving or due to leave Singapore

23A.—(1) The master, operator, owner, agent or charterer of every train arriving at any train checkpoint in Singapore from a place outside Singapore or leaving or due to leave any train checkpoint in Singapore to a place outside Singapore must, at an authorised train checkpoint and if required to do so by an immigration officer —

(*a*) within such time, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all the crew who are or will be on board the train at the time of its arrival at the train

checkpoint or departure from the train checkpoint, as the case may be;

[Act 31 of 2023 wef 31/07/2025]

(*b*) produce to the immigration officer (or another immigration officer) for inspection and interrogation every member of the crew as directed (either generally or specifically) by the immigration officer; and

[Act 31 of 2023 wef 31/07/2025]

(*c*) submit to such search of the train as may be necessary to establish the presence or absence of other persons on board.

[Act 31 of 2023 wef 31/07/2025]

(*d*) [*Deleted by Act 31 of 2023 wef 31/07/2025*]

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) In the case of a train carrying passengers, the master, operator, owner, agent or charterer must, in addition, if required to do so by an immigration officer —

(*a*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all passengers who are or will be on board the train at the time of its arrival at the authorised train checkpoint or departure from the authorised train checkpoint, as the case may be;

[Act 31 of 2023 wef 31/07/2025]

[Act 16 of 2026 wef 30/09/2026]

(*b*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all passengers disembarking in or embarking from Singapore; and

[Act 31 of 2023 wef 31/07/2025]

(*c*) produce to the immigration officer (or another immigration officer) for inspection and interrogation every passenger as

directed (either generally or specifically) by the immigration officer.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(3) Before the train arrives at or departs from the authorised train checkpoint (as the case may be), the master, operator, owner, agent or charterer must report to an immigration officer the presence on board of any stowaway, any unauthorised person, or any person proceeding to any country on that person's removal from any other country by the competent authority of that other country.

[Act 31 of 2023 wef 31/07/2025]

[Act 16 of 2026 wef 30/09/2026]

(3A) Any person who contravenes subsection (1)(*a*) or (2)(*a*) or (*b*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

[Act 31 of 2023 wef 31/07/2025]

(3B) The offence under subsection (3A) is a strict liability offence.

[Act 31 of 2023 wef 31/07/2025]

(3C) Any person who contravenes subsection (1)(*b*) or (*c*) or (2)(*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[Act 31 of 2023 wef 31/07/2025]

(3D) Any person who hinders or obstructs any search of a train under subsection (1)(*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

[Act 31 of 2023 wef 31/07/2025]

(4) If any person whose presence has not been reported under subsection (3) is found on board the train, the master, operator, owner, agent and charterer of the train shall each be guilty of an offence and shall each be liable on conviction to a fine of not less than $5,000 and not more than $10,000 in respect of each such person.

[Act 31 of 2023 wef 31/07/2025]

(5) In any proceedings under this section, the certificate in writing of an immigration officer who boarded or examined any particular train to the effect that the train carried, on arrival in Singapore, a total

number of crew corresponding in description to the particulars on the list furnished under subsection (1)(*a*) is conclusive proof that the train did on arrival carry that number of crew.

Provision of passenger and crew information in advance by master, etc., of train due to arrive in Singapore

23B.—(1) The master, operator, owner, agent or charterer of every train which is due to arrive at any train checkpoint in Singapore from a place outside Singapore must, upon being given reasonable prior notice in writing by the Controller to comply with this section —

(*a*) within such time prior to the arrival of the train at the train checkpoint, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the Controller a complete and accurate list of all the crew who are or will be on board the train at the time of its arrival at the train checkpoint;

[Act 31 of 2023 wef 31/07/2025]

(*b*) within such time prior to the arrival of the train at the train checkpoint and in such form and manner as may be prescribed, furnish to the Controller a complete and accurate list of all passengers who are or will be on board the train at the time of its arrival at the train checkpoint; and

[Act 31 of 2023 wef 31/07/2025]

(*c*) furnish to the Controller a complete and accurate list of all passengers disembarking in Singapore, containing such particulars regarding one or both of the following:

(i) advance passenger information;

(ii) information recorded in the passenger reservation system for that train,

within such time prior to the arrival of the train at the train checkpoint and in such form and manner as may be prescribed.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) The Controller may at any time by notice in writing to the master, operator, owner, agent or charterer of a train, revoke the notice given to that person under subsection (1).

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(3) Any person who contravenes subsection (1)(*a*), (*b*) or (*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

[Act 31 of 2023 wef 31/07/2025]

(4) The offence under subsection (3) is a strict liability offence.

[Act 31 of 2023 wef 31/07/2025]

Provision of passenger and crew information by driver, etc., of bus arriving in, leaving or due to leave Singapore

23C.—(1) The driver, operator, owner, agent or charterer of every bus arriving at any authorised point of entry in Singapore from a place outside Singapore, or leaving or due to leave any authorised point of departure in Singapore to a place outside Singapore, must, if required to do so by an immigration officer —

(*a*) within such time, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all the crew who are or will be on board the bus at the time of its arrival at the authorised point of entry, or departure from the authorised point of departure, as the case may be;

(*b*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a complete and accurate list of all passengers who are or will be on board the bus at the time of its arrival at the authorised point of entry, or departure from the authorised point of departure, as the case may be;

(*c*) within such time, in such form and manner and containing such particulars as may be prescribed, furnish to the immigration officer (or another immigration officer) a

complete and accurate list of all passengers disembarking in or embarking from Singapore;

(*d*) produce to the immigration officer (or another immigration officer) for inspection and interrogation every member of the crew and every passenger as directed (either generally or specifically) by the immigration officer; and

(*e*) submit to such search of the bus as may be necessary to establish the presence or absence of other persons on board.

(2) Subsection (1)(*b*) and (*c*) does not apply to an omnibus.

(3) Before the bus arrives at the authorised point of entry or departs from the authorised point of departure (as the case may be), the driver, operator, owner, agent or charterer must report to an immigration officer the presence on board of any stowaway, any unauthorised person, or any person proceeding to any country on the person's removal from any other country by the competent authority of that country.

(4) Any person who contravenes subsection (1)(*a*), (*b*) or (*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

(5) The offence under subsection (4) is a strict liability offence.

(6) Any person who contravenes subsection (1)(*d*) or (*e*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

(7) Any person who hinders or obstructs any search of a bus under subsection (1)(*e*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

(8) If any person whose presence in a bus has not been reported under subsection (3) is found on board the bus, the driver, operator, owner, agent and charterer of the bus shall each be guilty of an offence and shall each be liable on conviction to a fine of not less than $5,000 and not more than $10,000 in respect of each such person.

(9) In any proceedings under this section, the certificate in writing of an immigration officer who boarded or examined any particular bus to the effect that the bus carried, on arrival in Singapore, a total number of crew corresponding in description to the particulars on the list furnished under subsection (1)(*a*) is conclusive proof that the bus did on arrival carry that number of crew.

[Act 31 of 2023 wef 31/07/2025]

Provision of passenger and crew information in advance by driver, etc., of bus due to arrive in Singapore

23D.—(1) The driver, operator, owner, agent or charterer of every bus which is due to arrive at any authorised point of entry in Singapore from a place outside Singapore must, upon being given reasonable prior notice in writing by the Controller to comply with this section —

(*a*) within such time prior to the arrival of the bus at the authorised point of entry, in such form and manner and containing such particulars of the crew as may be prescribed, furnish to the Controller a complete and accurate list of all the crew who are or will be on board the bus at the time of its arrival at the authorised point of entry;

(*b*) within such time prior to the arrival of the bus at the authorised point of entry and in such form and manner as may be prescribed, furnish to the Controller a complete and accurate list of all passengers who are or will be on board the bus at the time of its arrival at the authorised point of entry; and

(*c*) furnish to the Controller a complete and accurate list of all passengers disembarking in Singapore, containing such particulars regarding one or both of the following:

(i) advance passenger information;

(ii) information recorded in the passenger reservation system for that bus,

within such time prior to the arrival of the bus at the authorised point of entry and in such form and manner as may be prescribed.

(2) Subsection (1)(*b*) and (*c*) does not apply to an omnibus.

(3) The Controller may at any time, by notice in writing to the driver, operator, owner, agent or charterer of the bus, revoke the notice given to that person under subsection (1).

(4) Any person who contravenes subsection (1)(*a*), (*b*) or (*c*) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000.

(5) The offence under subsection (4) is a strict liability offence.

[Act 31 of 2023 wef 31/07/2025]

Offence by employee, etc., of operator, etc., of vessel, aircraft, train or bus

23E.—(1) If a person (called in this section the offender) contravenes a relevant provision in respect of a conveyance, a related individual who (whether by act or omission) intentionally or knowingly causes or enables the offender to contravene the relevant provision shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 6 months or to both.

(2) In this section —

"conveyance" means a vessel, an aircraft, a train or a bus;

"related individual", for an offender, means —

(*a*) the master of the conveyance in respect of which the offender contravenes a relevant provision; or

(*b*) an officer or employee of the offender;

"relevant provision" means —

(*a*) for a vessel — section 22(1)(*a*) or (2)(*a*) or (*b*) or 22A(1)(*a*), (*b*) or (*c*);

(*b*) for an aircraft — section 23(1)(*a*), (*b*) or (*c*) or 23AA(1)(*a*), (*b*) or (*c*);

(*c*) for a train — section 23A(1)(*a*) or (2)(*a*) or (*b*) or 23B(1)(*a*), (*b*) or (*c*); or

(*d*) for a bus — section 23C(1)(*a*), (*b*) or (*c*) or 23D(1)(*a*), (*b*) or (*c*).

[Act 31 of 2023 wef 31/07/2025]

Provision in advance by person due to arrive in or due to leave Singapore by land

23F.—(1) This section applies to a person (called in this section the subject person) who —

(*a*) is due to arrive at any authorised point of entry in Singapore from a place outside Singapore, or is due to leave any authorised point of departure in Singapore to a place outside Singapore, by land (using any mode of land transport or on foot); and

(*b*) is, by reasonable prior notice given by the Controller, required to comply with this section.

(2) The subject person must, within such time prior to the subject person's arrival at the authorised point of entry or departure from the authorised point of departure (as the case may be), furnish to the Controller such particulars of the subject person, in such form and manner, as may be prescribed.

(3) The Controller may at any time, by notice to the subject person, revoke the notice given to the subject person under subsection (1)(*b*).

(4) The Controller may (instead of giving a notice directly to the subject person under subsection (1)(*b*) or (3)) publish the notice generally, in such form and manner as the Controller considers appropriate in the circumstances, and the requirements of subsection (1)(*b*) or (3) (as the case may be) are taken to be satisfied upon such publication.

(5) Any person who contravenes subsection (2) shall be guilty of an offence.

[Act 31 of 2023 wef 31/07/2025]

Examination of persons arriving by sea

24.—(1) Every person arriving by sea in Singapore, whether or not he or she enters Singapore, must appear before an immigration officer at such time and place as that officer may direct.

[18/2012]

(1A) A person who appears before an immigration officer under subsection (1) must furnish such particulars about the person, in such form or manner, as that officer may require.

[Act 31 of 2023 wef 31/12/2024]

(2) The immigration officer, after such examination as he or she may consider necessary, must inform any person whom the immigration officer considers to be prohibited from entering Singapore under the provisions of this Act or any regulations or orders made under this Act of his or her finding.

[Act 31 of 2023 wef 31/12/2024]

(2A) The person mentioned in subsection (2) —

(*a*) if still on board the vessel that conveyed the person to Singapore — must not disembark in Singapore; or

(*b*) if the person has disembarked for the purposes of the examination mentioned in that subsection — must immediately comply with any direction given by an immigration officer under subsection (2B).

[Act 31 of 2023 wef 31/12/2024]

(2B) An immigration officer may direct the person mentioned in subsection (2A)(*b*) to —

(*a*) re-embark, and remain on, the vessel that the person disembarked from;

(*b*) embark, and remain on, another vessel specified by the immigration officer; or

(*c*) proceed to, and remain in, an immigration depot or a place designated by the Controller, until arrangements are made for the person to leave Singapore, and leave Singapore in accordance with those arrangements.

[Act 31 of 2023 wef 31/12/2024]

(3) The master, operator, owner, agent or charterer of the vessel must likewise immediately be informed in writing by the immigration officer of his or her finding and the master, operator, owner, agent or charterer must not permit the person to disembark in Singapore, or, if the person has disembarked, whether for the purpose of examination or otherwise, is bound to re-embark the person and remove the person from Singapore by the same or such other vessel, to the person's place of embarkation, the country of the person's birth or citizenship or such other destination, as that immigration officer may direct.

[18/2012]

[Act 31 of 2023 wef 31/12/2024]

(4) Any person who —

(*a*) refuses or neglects to appear before an immigration officer as required by subsection (1) or who leaves the place of examination without or otherwise than in accordance with the authorisation of that officer;

(*b*) contravenes subsection (1A) or (2A)(*a*) or (*b*); or

[Act 31 of 2023 wef 31/12/2024]

(*c*) being the master, operator, owner, agent or charterer of a vessel, permits any person to disembark in Singapore or refuses to re-embark any person, or refuses or neglects to remove the person from Singapore in accordance with subsection (3), after being informed by an immigration officer that the person is prohibited from entering Singapore or that the person has refused or neglected to appear before an immigration officer as required by subsection (1) or that the person had left the place of examination without or otherwise than in accordance with the authorisation of that officer,

[Act 31 of 2023 wef 31/12/2024]

shall each be guilty of an offence and shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 12 months or to both.

[18/2012]

(5) If any person contravenes subsection (2A)(*a*) or (*b*), an immigration officer, a police officer or an auxiliary police officer acting under the directions of an immigration officer or a police

officer, may take such steps, including the use of force, as may be reasonably necessary to compel that person to comply with that provision, and the master, operator, owner, agent or charterer of the relevant vessel is bound to re-embark or embark (as the case may be) that person and to remove that person from Singapore.

[18/2012]

[Act 31 of 2023 wef 31/12/2024]

(6) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

Examination of persons arriving at authorised airport

25.—(1) Every person arriving by air at any authorised airport in Singapore, whether or not the person enters Singapore, must appear before an immigration officer at such time and place as that officer may direct.

[18/2012]

(1A) A person who appears before an immigration officer under subsection (1) must furnish such particulars about the person, in such form or manner, as that officer may require.

[Act 31 of 2023 wef 31/12/2024]

(2) The immigration officer, after such examination as he or she may consider necessary, must inform any person whom the immigration officer considers to be prohibited from entering Singapore under the provisions of this Act or any regulations or orders made under this Act of his or her finding.

[Act 31 of 2023 wef 31/12/2024]

(2A) The person mentioned in subsection (2) must immediately comply with any direction given by an immigration officer under subsection (2B).

[Act 31 of 2023 wef 31/12/2024]

(2B) An immigration officer may direct the person mentioned in subsection (2A) to —

(*a*) leave Singapore by the first available means; or

(*b*) proceed to, and remain in, an immigration depot or a place designated by the Controller, until arrangements are made for the person to leave Singapore, and leave Singapore in accordance with those arrangements.

[Act 31 of 2023 wef 31/12/2024]

(3) The captain, operator, owner, agent or charterer of the aircraft in which the person arrived must, if so required by the immigration officer, remove the person from Singapore by the same or such other aircraft, to the person's place of embarkation, the country of the person's birth or citizenship or such other destination, as that immigration officer may direct.

[18/2012]

[Act 31 of 2023 wef 31/12/2024]

(4) Any person who —

(*a*) refuses or neglects to appear before an immigration officer as required by subsection (1) or who leaves the place of examination without or otherwise than in accordance with the authorisation of that officer;

(*b*) contravenes subsection (1A) or (2A); or

[Act 31 of 2023 wef 31/12/2024]

(*c*) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(*d*) being the captain, operator, owner, agent or charterer of the aircraft in which any person arrived in Singapore, refuses or neglects to remove the person from Singapore in accordance with subsection (3) after being informed by an immigration officer that the person is prohibited from entering Singapore or that the person has refused or neglected to appear before an immigration officer as required by subsection (1) or that the person has left the place of examination without, or otherwise than in accordance with, the authorisation of that officer,

[Act 31 of 2023 wef 31/12/2024]

shall each be guilty of an offence and shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 12 months or to both.

[18/2012]

(5) If any person contravenes subsection (2A), an immigration officer, a police officer or an auxiliary police officer acting under the directions of an immigration officer or a police officer, may take such steps, including the use of force, as may be reasonably necessary to compel that person to comply with that provision.

[Act 31 of 2023 wef 31/12/2024]

Examination of persons arriving by train

25A.—(1) Every person arriving by train at any authorised train checkpoint in Singapore, whether or not the person enters Singapore, must appear before an immigration officer at such time and place as that officer may direct.

[18/2012]

(1A) A person who appears before an immigration officer under subsection (1) must furnish such particulars about the person, in such form or manner, as that officer may require.

[Act 31 of 2023 wef 31/12/2024]

(2) The immigration officer, after such examination as he or she may consider necessary, must inform any person whom the immigration officer considers to be prohibited from entering Singapore under the provisions of this Act or any regulations or orders made under this Act of his or her finding.

[Act 31 of 2023 wef 31/12/2024]

(2A) The person mentioned in subsection (2) must immediately comply with any direction given by an immigration officer under subsection (2B).

[Act 31 of 2023 wef 31/12/2024]

(2B) An immigration officer may direct the person mentioned in subsection (2A) to —

(*a*) leave Singapore by any mode of land transport or on foot; or

(*b*) proceed to, and remain in, an immigration depot or a place designated by the Controller, until arrangements are made for the person to leave Singapore, and leave Singapore in accordance with those arrangements.

[Act 31 of 2023 wef 31/12/2024]

(3) The master, operator, owner, agent or charterer of the train in which the person arrived must, if so required by the immigration officer, remove the person from Singapore by the same or such other train, to the person's place of embarkation, the country of the person's birth or citizenship or such other destination, as that immigration officer may direct.

[18/2012]

[Act 31 of 2023 wef 31/12/2024]

(4) Any person who —

(*a*) refuses or neglects to appear before an immigration officer as required by subsection (1) or who leaves the place of examination without, or otherwise than in accordance with, the authorisation of that officer;

(*b*) contravenes subsection (1A) or (2A); or

[Act 31 of 2023 wef 31/12/2024]

(*c*) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(*d*) being the master, operator, owner, agent or charterer of the train in which any person arrived in Singapore, refuses or neglects to remove the person from Singapore in accordance with subsection (3) after being informed by an immigration officer that the person is prohibited from entering Singapore or that the person has refused or neglected to appear before an immigration officer as required by subsection (1) or that the person has left the place of examination without, or otherwise than in accordance with, the authorisation of that officer,

[Act 31 of 2023 wef 31/12/2024]

shall each be guilty of an offence and shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 12 months or to both.

[18/2012]

(5) If any person contravenes subsection (2A), an immigration officer, a police officer or an auxiliary police officer acting under the directions of an immigration officer or a police officer, may take such steps, including the use of force, as may be reasonably necessary to compel that person to comply with that provision.

[Act 31 of 2023 wef 31/12/2024]

Examination of persons entering Singapore by land or at place other than authorised landing place or airport

26.—(1) Every person who enters Singapore by land must —

(*a*) proceed to the nearest immigration control post;

(*b*) appear before an immigration officer in charge of the post; and

(*c*) furnish such particulars about the person, in such form or manner, as that officer may require.

[Act 31 of 2023 wef 31/12/2024]

(2) Every person arriving by sea or air in Singapore at any place, other than at an authorised landing place or airport, must immediately proceed to and appear before the nearest immigration officer.

(3) The immigration officer before whom any person appears in accordance with this section must, if the immigration officer considers that the person is prohibited from entering Singapore under the provisions of this Act or any regulations or orders made under this Act, inform that person of his or her finding.

[Act 31 of 2023 wef 31/12/2024]

(3A) The person mentioned in subsection (3) must immediately comply with any direction given by an immigration officer under subsection (3B).

[Act 31 of 2023 wef 31/12/2024]

(3B) An immigration officer may direct the person mentioned in subsection (3A) to —

(*a*) leave Singapore in accordance with the instructions of the immigration officer; or

(*b*) proceed to, and remain in, an immigration depot or a place designated by the Controller, until arrangements are made for the person to leave Singapore, and leave Singapore in accordance with those arrangements.

[Act 31 of 2023 wef 31/12/2024]

(4) Any person who contravenes this section shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 12 months or to both.

(5) If any person contravenes subsection (3A), an immigration officer, a police officer or an auxiliary police officer acting under the directions of an immigration officer or a police officer, may take such steps, including the use of force, as may be reasonably necessary to compel that person to comply with that provision.

[Act 31 of 2023 wef 31/12/2024]

Power to send person to depot for further examination

27.—(1) Where an immigration officer is in doubt as to the right of any person to enter Singapore, it is lawful for that officer to direct the person to an immigration depot and, in that case, that person must proceed immediately to that depot and must remain there until permitted to leave by that officer.

(2) No person shall, except on the written order of the Minister, be so detained for any period exceeding 7 days except that the Controller may, in his or her discretion, and pending the completion of inquiries regarding that person, release that person from the immigration depot on such terms and conditions as the Controller may think fit, and for that purpose the Controller may issue to that person a pass in the prescribed form.

(3) Any person who refuses or neglects to comply with any directions given by an immigration officer under subsection (1), or who leaves an immigration depot in contravention of that subsection, shall be guilty of an offence.

Interrogation of travellers

28.—(1) Any person who arrives in Singapore or who is about to leave Singapore must —

(*a*) fully and truthfully answer all questions and enquiries put to him or her by an immigration officer or a police officer tending, directly or indirectly, to establish his or her identity, nationality or occupation or bearing on any of the restrictions contained in this Act or the regulations or any absolute or conditional liability on his or her part to any military, naval or air force service under any country; and

[Act 31 of 2023 wef 31/12/2024]

(*b*) disclose and produce to any such officer on demand all documents in his or her possession relating to those matters.

(2) All such answers and documents shall be admissible in evidence in any proceedings under this Act against the person making, disclosing or producing the same.

(3) Nothing in this section is to be construed as rendering any such answer inadmissible in any other proceedings in which they would otherwise be admissible.

(4) Any person who —

(*a*) refuses to answer any question or enquiry put to him or her under subsection (1);

(*b*) knowingly gives any false or misleading answer to any such question or enquiry;

(*c*) refuses or fails to produce any document in his or her possession when required to do so under subsection (1); or

(*d*) knowingly produces any false or misleading document,

shall be guilty of an offence and shall be liable on conviction —

(*e*) in the case of an offence under paragraph (*a*), (*b*) or (*c*), to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both; or

(*f*) in the case of an offence under paragraph (*d*), to a fine not exceeding $6,000 or to imprisonment for a term not exceeding 2 years or to both.

Medical examination

29.—(1) For the purpose of exercising his or her powers and carrying out his or her functions and duties under this Act or the regulations, an immigration officer may require any person who desires to enter Singapore, or to whom a permit, pass or certificate has been issued, to submit to an examination by a registered medical practitioner.

[18/2012]

(2) The registered medical practitioner must, upon completion of an examination of a person under subsection (1), submit a copy of the results of the examination to the Controller.

[18/2012]

(3) Despite the provisions of any other written law or rule of law, a registered medical practitioner must, if required by the Controller for the purposes of exercising his or her powers and carrying out his or

her functions and duties under this Act or the regulations, furnish the Controller with a copy of any medical record relating to a person who has been examined pursuant to subsection (1) as the Controller may require.

[18/2012]

(4) Any person to whom a permit, pass or certificate has been issued who, without reasonable excuse, refuses to submit to an examination when required by an immigration officer under subsection (1) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

(5) The Controller may cancel the permit, pass or certificate of any person who refuses to submit to any examination when required to do so by an immigration officer under subsection (1).

(6) If the Controller cancels a person's permit, pass or certificate under subsection (5), the Controller must give notice of the cancellation to the person.

[Act 31 of 2023 wef 31/12/2024]

(7) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(8) In this section, "registered medical practitioner" means a medical practitioner registered under the Medical Registration Act 1997 who is employed in any hospital or medical institution and is designated by name or office by the Controller in writing for the purposes of this section.

[18/2012]

Immigration officer may give instructions to prevent evasion of examination

30.—(1) An immigration officer may give such instructions as may be reasonably necessary to ensure that no person who arrives in, or is leaving, Singapore evades examination either of his or her person or effects.

[Act 31 of 2023 wef 31/12/2024]

(2) Any person who, without reasonable excuse, refuses or fails to comply with any instructions given under subsection (1) shall be guilty of an offence.

PART 5

REMOVAL FROM SINGAPORE

Removal of prohibited immigrants from Singapore

31.—(1) If during the examination of any person arriving in Singapore or after such inquiry as may be necessary that person is found to be a prohibited immigrant, the Controller shall, subject to the provisions of the regulations, prohibit the person from disembarking or may detain the person at an immigration depot or other place designated by the Controller.

(2) The person shall be liable to be removed from Singapore to his or her place of embarkation or to the country of his or her birth or citizenship or to any other port or place designated by the Controller.

(3) For the purposes of this Part, any reference to a person who has arrived in Singapore includes a reference to a person who has arrived but has not yet entered Singapore.

Power of Controller to remove prohibited immigrants

31A.—(1) The Controller may, at any time, by written order, direct any person mentioned in subsection (2) to remove, within such period as may be specified in the order, a prohibited immigrant who has arrived in Singapore.

(2) An order under subsection (1) is to be made against and served on —

(*a*) the master of the vessel, aircraft or train which first brought the prohibited immigrant to Singapore; or

(*b*) the master of any other vessel, aircraft or train belonging to the same owner, operated by the same operator or chartered by the same charterer of the vessel, aircraft or train mentioned in paragraph (*a*).

[Act 31 of 2023 wef 31/07/2025]

(3) The Controller may take such action or use such force as may be necessary to ensure that an order under this section is complied with.

(4) Without limiting subsection (3), the Controller may, by written order, direct the person against whom an order under this section is

made, not to move his or her vessel, aircraft or train unless the prohibited immigrant named in that order is on board the vessel, aircraft or train.

(5) Any person who contravenes any order made under subsection (1) or (4) shall be guilty of an offence and shall be liable on conviction to a fine of not less than $5,000 and not more than $10,000 or to imprisonment for a term not exceeding 12 months or to both.

Removal of illegal immigrants

32.—(1) Any person who is convicted of an offence under section 5, 6, 8 or 9 is liable to be removed from Singapore by order of the Controller.

(1A) If a person is ordered to be removed from Singapore under subsection (1), the Controller may repatriate the person to —

(*a*) the person's place of embarkation;

(*b*) the country of the person's birth or citizenship; or

(*c*) any other place designated by the Controller.

[Act 31 of 2023 wef 31/12/2024]

(2) A citizen of Singapore convicted of an offence under section 5 must not be ordered to be removed from Singapore under this section.

Removal of persons unlawfully remaining in Singapore

33.—(1) Where the presence of any person in Singapore is unlawful by reason of section 15 or 62, that person is, whether or not any proceedings are taken against him or her in respect of any offence under that section, liable to be removed from Singapore by order of the Controller.

(2) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(3) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(4) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(5) Where an order of removal under subsection (1) has been made in respect of any person, any permit, pass or certificate to enter or

remain in Singapore issued to him or her under this Act or the regulations is cancelled on the date of the order.

[Act 31 of 2023 wef 31/12/2024]

(5A) If a person is ordered to be removed from Singapore under subsection (1), the Controller may repatriate the person to —

(*a*) the person's place of embarkation;

(*b*) the country of the person's birth or citizenship; or

(*c*) any other place designated by the Controller.

[Act 31 of 2023 wef 31/12/2024]

(6) Nothing in this Part or the regulations requires the Controller to disclose any fact, produce any document or assign any reason for the making of any order of removal under this Part which he or she considers it to be against the public interest to do so.

[Act 31 of 2023 wef 31/12/2024]

Removal of persons ceasing to be citizens of Singapore

33A.—(1) The Controller may order that a person mentioned in section 11A(1) be removed from Singapore if the Controller is satisfied that —

(*a*) the person is a prohibited immigrant; or

(*b*) the presence of the person in Singapore is undesirable or would be prejudicial to public security in Singapore.

(2) If an order of removal is made under subsection (1) in respect of a person, any permit or pass issued to the person under section 11A(3) is cancelled on the date of the order.

[Act 31 of 2023 wef 31/12/2024]

Detention of persons ordered to be removed

34.—(1) Where any person is ordered to be removed from Singapore under the provisions of this Act, it is lawful for the Controller to order that person to be detained in custody for such period as may be necessary for the purpose of making arrangements for that person's removal.

(2) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(3) Any person who is ordered to be removed from Singapore may be placed on board a suitable vessel, aircraft, train or bus by any police officer or immigration officer, and may be lawfully detained on board that vessel, aircraft, train or bus, so long as the vessel, aircraft, train or bus is within the limits of Singapore.

[Act 31 of 2023 wef 31/12/2024]

[Act 31 of 2023 wef 31/07/2025]

(4) Any person who is detained in custody pursuant to an order made by the Controller under subsection (1) may be so detained in any prison, police station or immigration depot, or in any other place appointed for the purpose by the Controller.

Power to arrest person liable to removal

35. Any person reasonably believed to be a person liable to removal from Singapore under this Act may be arrested without warrant by any immigration officer generally or specially authorised by the Controller in that behalf or by a police officer, and may be detained in any prison, police station or immigration depot for a period not exceeding 14 days pending a decision as to whether an order for his or her removal should be made.

Unlawful return after removal

36.—(1) A person who is removed from or otherwise lawfully sent out of Singapore must not enter or reside in Singapore without the prior written permission of the Controller.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and shall on conviction be punished with imprisonment for a presumptive minimum term of not less than one year and not more than 3 years and shall also be liable to a fine not exceeding $6,000.

(3) Any person who is convicted of an offence under subsection (2) is liable to be removed from Singapore by order of the Controller.

(4) If a person is ordered to be removed from Singapore under subsection (3), the Controller may repatriate the person to —

(*a*) the person's place of embarkation;

(*b*) the country of the person's birth or citizenship; or

(*c*) any other place designated by the Controller.

[Act 31 of 2023 wef 31/12/2024]

PART 5A

OBLIGATIONS RELATING TO IDENTIFYING INFORMATION OR PASSENGER INFORMATION

[18/2012]

Interpretation of this Part

36A. In this Part, unless the context otherwise requires —

"crew information" means the information relating to any person who is or will be on board any vessel, aircraft, train or bus as a member of its crew at the time of its arrival in or departure from Singapore, which is provided to the Controller or any immigration officer by the master, operator, owner, agent or charterer of the vessel, aircraft, train or bus (as the case may be) pursuant to any provision of this Act;

[Act 31 of 2023 wef 31/07/2025]

"disclose", in relation to identifying information that is a personal identifier or in relation to passenger information, includes providing access to the identifying information or passenger information;

"identifying information" means —

(*a*) any personal identifier;

(*b*) any meaningful identifier derived from any personal identifier;

(*c*) any record of a result of analysing any personal identifier or meaningful identifier derived from any personal identifier; and

(*d*) any other information, derived from any personal identifier or meaningful identifier derived from any personal identifier, or from any record of a kind referred to in paragraph (*c*), that could be used to

discover a particular person's identity or to get information about a particular person;

"passenger information" means the information relating to any person who is or will be on board any vessel, aircraft, train or bus as its passenger at the time of its arrival in or departure from Singapore, which is provided to the Controller or any immigration officer by the master, operator, owner, agent or charterer of the vessel, aircraft, train or bus (as the case may be) pursuant to any provision of this Act.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

Authorising access to or disclosure of identifying information, crew information and passenger information

36B.—(1) The Minister may, in writing, authorise a specified person, or any person included in a specified class of persons —

(*a*) to access identifying information, crew information or passenger information of the kind specified in the Minister's authorisation; or

[Act 31 of 2023 wef 31/07/2025]

(*b*) to disclose, on written request, identifying information, crew information or passenger information of the kind specified in the Minister's authorisation, to another specified person, or another person included in a specified class of persons, in the Minister's authorisation,

for the purpose or purposes specified in the Minister's authorisation.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) The Minister must specify in an authorisation under this section, as the purpose or purposes for which access or disclosure is authorised, one or more of the following purposes, and no other:

(*a*) combating document and identity fraud in immigration matters;

(*b*) assisting in the identification of, and authenticating the identity of, any person who may be required by or under this Act to provide a personal identifier;

(*ba*) assisting in the locating and identification of passengers within any part of an authorised airport;

[Act 31 of 2023 wef 31/12/2024]

(*c*) improving the efficiency and integrity of immigration processing at authorised landing places, airports, train checkpoints or points of entry;

(*ca*) improving the efficiency, integrity and security of operations and processes relating to authorised airports and aircraft at authorised airports;

[Act 31 of 2023 wef 31/12/2024]

(*cb*) improving the efficiency and integrity of processes relating to the purchase of duty free goods and the tourist refund scheme established under the Goods and Services Tax Act 1993;

[Act 31 of 2023 wef 31/12/2024]

(*d*) assisting in the identification of, and authenticating the identity of, any applicant for or holder of a Singapore visa, and facilitating his or her entry into Singapore;

(*e*) enforcement of the criminal law, including investigating or prosecuting a person for an offence under any written law;

(*f*) administering or managing the storage of identifying information, crew information or passenger information;

[Act 31 of 2023 wef 31/07/2025]

(*g*) modifying identifying information to enable it to be matched with other identifying information, or in order to correct errors or ensure compliance with appropriate standards;

(*h*) identifying non-citizens who are prohibited immigrants, who are of national security concern or who are associated with activities of a criminal nature and whose detention or supervision may be necessary in the interests of public safety, peace and good order;

(*i*) making decisions under this Act, the Passports Act 2007 or the regulations made under either Act;

(*ia*) preventing, detecting or investigating criminal or terrorist activities or activities which may be prejudicial to the security of Singapore or any part thereof or to the maintenance of public order or essential services;

(*ib*) identifying an individual who is unconscious or otherwise unable to communicate, for the purposes of providing urgent medical care to the individual;

(*j*) any other purpose the disclosure of which is required or authorised by or under any written law.

[18/2012; 53/2018]

(3) For the purposes of subsection (1)(*b*), a specified person or a specified class of persons to whom identifying information, crew information or passenger information may be disclosed may include a police force, a law enforcement body or a border control body of a foreign country.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

Accessing or disclosing identifying information, crew information or passenger information

36C.—(1) If a person accesses identifying information, crew information or passenger information, and the person —

(*a*) is not authorised under section 36B to access any identifying information, crew information or passenger information; or

[Act 31 of 2023 wef 31/07/2025]

(*b*) is not authorised under section 36B to access the identifying information, crew information or passenger information for the purpose for which the person accessed it,

the person shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 3 years or to both.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) If a person's conduct causes disclosure of identifying information, crew information or passenger information, and the disclosure is not a disclosure that is for any of the purposes specified in section 36B(2), the person shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $5,000 or to imprisonment for a term not exceeding 3 years or to both.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

PART 5B

CO-LOCATED BORDER CONTROL FOR CROSS-BORDER RAILWAYS

[Act 16 of 2026 wef 30/09/2026]

Definitions for Part 5B

36D. In this Part —

"automated clearance system" has the meaning given by section 5A(5);

"body search", "screening" and "strip search" have the meanings given by section 5(5) of the Cross-Border Railways (Border Control Co-location) Act 2026;

"conduct", as a verb, means —

(*a*) to do an act or omit to do an act —

(i) on a single occasion; or

(ii) on a number of occasions over a period of time; or

(*b*) to both do an act and omit to do an act —

(i) on a single occasion; or

(ii) on a number of occasions over a period of time;

"cross-border railway" means a railway that —

(*a*) has a railway network with a terminus in Singapore and runs to any part of peninsular Malaysia; and

(*b*) is constructed under the Cross-Border Railways Act 2018;

"cross-border train" means a train used for or in connection with providing a cross-border train service;

"cross-border train service" means a passenger train service provided using a cross-border railway;

"detain", by a Singapore preclearance officer, where the expression is used in the context other than quarantine, means to keep in the company (not necessarily immediate) of, and to be restricted in movement by, the Singapore preclearance officer, and includes to keep or cause to be kept, in such detention;

"immigration clearance" has the meaning given by section 5(8);

"infectious disease" means a disease that —

(*a*) is caused or is suspected to be caused by a micro-organism or any agent of disease;

(*b*) is capable or is suspected to be capable of transmission by any means to human beings; and

(*c*) is either —

(i) the subject of a declaration under the Infectious Diseases Act 1976 of a public health emergency; or

(ii) of a fatal nature, or so serious a nature that the Director-General of Public Health or the Director-General of Health assesses the disease as a concern to public health in Singapore;

"Malaysian border protection service officer" has the meaning given by section 3(1) of the Cross-Border Railways (Border Control Co-location) Act 2026;

"pre-clearance procedures" means procedures requiring a person within a Singapore designated area of a cross-border railway to be with an immigration officer or at an automated clearance system for immigration clearance to enter Singapore;

"pre-cleared train journey" means a journey on a cross-border train that —

(*a*) is bound directly for Singapore from peninsular Malaysia; and

(*b*) is declared under section 36F to be a pre-cleared train journey;

"Singapore designated area" has the meaning given by section 3(1) of the Cross-Border Railways (Border Control Co-location) Act 2026;

"Singapore preclearance officer" means an immigration officer who is a Singapore preclearance officer within the meaning of the Cross-Border Railways (Border Control Co-location) Act 2026.

[Act 16 of 2026 wef 30/09/2026]

Minister may send immigration officers outside Singapore

36E. The Minister may, subject to Part 4 of the Cross-Border Railways (Border Control Co-location) Act 2026, order immigration officers to proceed outside Singapore to conduct immigration clearance within a Singapore designated area as Singapore preclearance officers in connection with any treaty respecting arrangements for the co-location of border clearance of people and goods travelling by cross-border train between Singapore and peninsular Malaysia.

[Act 16 of 2026 wef 30/09/2026]

Pre-cleared train journey

36F.—(1) The Controller may, subject to the general or special directions of the Minister, declare —

(*a*) a specified train journey on a cross-border train on a specified day or specified period to be a pre-cleared train journey for the purposes of this Act; or

(*b*) a specified class of train journeys on a cross-border train conducted by a specified person to be pre-cleared train journeys for the purposes of this Act.

(2) A particular train journey to which a declaration under subsection (1)(*a*) or (*b*) applies is not a pre-cleared train journey if the Controller decides, before any of the passengers or crew on that journey disembark in Singapore, that it is inappropriate to treat the train journey as such and cancels the declaration insofar as it applies to that particular train journey.

[Act 16 of 2026 wef 30/09/2026]

Application of provisions to cross-border railway preclearance outside Singapore

36G.—(1) Subject to subsection (3), where an area outside Singapore is declared under section 5(1AA) to be an authorised point of entry or immigration control post in connection with any treaty specified in the First Schedule to the Cross-Border Railways (Border Control Co-location) Act 2026, the provisions of this Act affecting —

(*a*) any person travelling to Singapore for the purpose of seeking entry under a valid permit or pass;

(*b*) any person who desires to enter Singapore;

(*c*) any person arriving by train in Singapore from a place outside Singapore;

(*d*) any person arriving or due to arrive at any authorised point of entry in Singapore from a place outside Singapore; or

(*e*) any person disembarking or about to disembark in Singapore,

extend (so far as relevant) to any person who is travelling to Singapore on a pre-cleared train journey and arrives or is due to arrive at the authorised point of entry or immigration control post outside Singapore at which pre-clearance procedures are carried out.

(2) Subject to subsection (3), any reference in any provision of this Act to an immigration officer as the provision relates to an authorised point of entry or immigration control post outside Singapore at which pre-clearance procedures are carried out is a reference only to an immigration officer who is a Singapore preclearance officer.

(3) In relation to an authorised point of entry or immigration control post outside Singapore at which pre-clearance procedures are carried out —

(*a*) any train travelling to Singapore on a pre-cleared train journey that is due to leave or is leaving the authorised point of entry or immigration control post outside Singapore is taken to be a train arriving at any train checkpoint in Singapore from a place outside Singapore for the purposes of sections 23A and 23B;

(*b*) any reference in section 25A(2B) to a direction to a person to leave Singapore by any mode of land transport or on foot is a reference to disallowing the person to board a cross-border train travelling to Singapore on a pre-cleared train journey; and

(*c*) any reference in section 31 or 31A to prohibiting a person from disembarking or to removing a person from Singapore includes a reference to disallowing the person to board a cross-border train travelling to Singapore on a pre-cleared train journey.

(4) This section is subject to the limits in sections 24 and 25 of the Cross-Border Railways (Border Control Co-location) Act 2026 on the exercise of any power under this Act.

[Act 16 of 2026 wef 30/09/2026]

When person travelling on pre-cleared train journey enters Singapore

36H. To be clear, if a person is travelling to Singapore from a place outside Singapore on a pre-cleared train journey, he or she is to be treated as entering Singapore for the purposes of this Act when all the following are satisfied:

(*a*) the person arrives at an authorised point of entry outside Singapore at which pre-clearance procedures are carried out by Singapore preclearance officers;

(*b*) the person is with a Singapore preclearance officer or at an automated clearance system for immigration clearance and complies with pre-clearance procedures at the authorised point of entry outside Singapore;

(*c*) the person —

(i) is not refused entry into Singapore by a Singapore preclearance officer at that authorised point of entry outside Singapore; and

(ii) is not the subject of a no-boarding directive issued under section 9AA;

(*d*) the person did not disembark anywhere else after he or she left that authorised point of entry outside Singapore and before arriving at an authorised train checkpoint in Singapore;

(*e*) the person arrives in Singapore at the authorised train checkpoint in Singapore and leaves the precincts of the authorised train checkpoint otherwise than —

(i) departing from Singapore by an approved route; or

(ii) under detention.

[Act 16 of 2026 wef 30/09/2026]

Extended criminal jurisdiction for conduct within Singapore designated area for certain offences

36I.—(1) Any conduct engaged in outside Singapore within a Singapore designated area of a cross-border railway that, if engaged

in within Singapore, would constitute an offence under any of the following provisions of this Act if and as modified by this Part:

(*a*) section 5(5) read with section 5(2);

(*b*) section 5A(3);

(*c*) section 6(3);

(*d*) section 8(5);

(*e*) section 9(5) or (6);

(*f*) section 25A(4);

(*g*) section 27(3);

(*h*) section 28(4)(*a*), (*b*), (*c*) or (*d*);

(*i*) section 29(4);

(*j*) section 30(2);

(*k*) section 36(2);

(*l*) section 57(1)(*a*), (*aa*), (*c*), (*f*), (*g*), (*i*), (*j*), (*k*), (*ka*), (*l*), (*m*) or (*n*);

(*m*) section 57D(1) or (2),

is to be treated for the purposes of that provision as if the person engaged in that conduct in Singapore.

(2) A person who engages in any conduct mentioned in subsection (1) may be tried and punished for that conduct by a court in Singapore.

(3) However, sections 38(1) and (3), 51(3) and 57D(6) do not apply to or in relation to any person who engaged in any conduct mentioned in subsection (1) until the person is within Singapore.

(4) To be clear, it does not matter whether the conduct engaged in constitutes an offence under the laws of Malaysia, and this section does not affect sections 39 and 40 of the Cross-Border Railways (Border Control Co-location) Act 2026.

[Act 16 of 2026 wef 30/09/2026]

PART 6

MISCELLANEOUS

Performance of duties of immigration officers

37.—(1) Immigration officers appointed under this Act must perform the duties imposed on them by this Act and the regulations, and must also perform such duties as are required of them by the Controller, either directly or through any other officer.

(2) No action taken by any such officer under or for any purpose of this Act is deemed to be invalid or unauthorised by reason only that it was not taken by the officer specially appointed or detailed for the purpose.

(3) Every immigration officer is deemed to be a public servant within the meaning of the Penal Code 1871.

Authority of immigration officer to arrest and prosecute

38.—(1) Except when exercising any powers under section 51AA, 51AB, 51AC or 51AD, every immigration officer appointed under this Act has the authority and powers of a police officer to enforce any of the provisions of this Act relating to arrest, detention or removal.

[6/2018]

[Act 31 of 2023 wef 31/12/2024]

(2) Every immigration officer has the authority to appear in court and may, with the authorisation of the Public Prosecutor, conduct any prosecution in respect of any offence under this Act or the regulations.

[15/2010]

(3) In any case relating to the commission of an offence under this Act or the regulations, an immigration officer has all the powers of a police officer under the Criminal Procedure Code 2010 in relation to an investigation into an arrestable offence.

[Act 31 of 2023 wef 31/12/2024]

(4) For the purposes of subsection (3), when an immigration officer is exercising the powers of a police officer under the Criminal Procedure Code 2010, the immigration officer is deemed to be an officer not below the rank of inspector of police.

[15/2010]

Immigration officer to be armed

38A. Every immigration officer must be provided with such batons, arms, ammunition and other accoutrements as may be necessary for the effective discharge of his or her duties.

Power to summon witnesses, etc.

39.—(1) The Controller may, for the purpose of any inquiry under this Act, summon and examine witnesses on oath or affirmation, and may require the production of documents relevant to the inquiry.

(2) Any person summoned as a witness under subsection (1) who, without reasonable excuse, fails to attend at the time and place mentioned in the summons, or who, having attended, refuses to answer any question that may lawfully be put to him or her or to produce any document which it is in his or her power to produce, shall be guilty of an offence.

Exclusion of judicial review

39A.—(1) There shall be no judicial review in any court of any act done or decision made by the Minister or the Controller under any provision of this Act except in regard to any question relating to compliance with any procedural requirement of this Act or the regulations governing that act or decision.

(2) In this section, "judicial review" includes proceedings instituted by way of —

(*a*) an application for a Mandatory Order, a Prohibiting Order or a Quashing Order;

(*b*) an application for a declaration or an injunction;

(*c*) an Order for Review of Detention; and

(*d*) any other suit or action relating to or arising out of any decision made or act done pursuant to any power conferred upon the Minister or the Controller by any provision of this Act.

Opportunity to be heard not required to be given

39B. To avoid doubt, before making any decision under this Act or the regulations, the Controller or the Minister (as the case may be) is not required to give any person who may be affected by the decision an opportunity to be heard.

[Act 31 of 2023 wef 31/12/2024]

Duty of police officers to execute orders

40. Every police officer must, when so requested by an immigration officer, receive and execute any written order of the Controller, and any warrant of the Controller for the arrest, detention or removal of any person made under the provisions of this Act.

Restriction on discharge of member of crew

41.—(1) When any seaman is about to be or is discharged or paid off in Singapore, the master, operator, owner, charterer or agent must so notify the Controller.

[Act 31 of 2023 wef 31/07/2025]

(2) A member of a crew who has been discharged or paid off must not be left in Singapore unless either —

(*a*) he or she is a citizen of Singapore; or

(*b*) he or she is in possession of a valid permit or pass.

(3) Where there has been any contravention of subsection (2), the master, operator, owner, charterer, agent or consignee of the vessel, aircraft, train or bus in which the person concerned was employed is liable for the maintenance of that person and for the cost of that person's repatriation to that person's place of birth or citizenship or, if the master, operator, owner, charterer, agent or consignee so elects, to such other place as the Controller may approve.

[Act 31 of 2023 wef 31/07/2025]

Signing on or bringing as member of crew any person with intent to land contrary to this Act

42. Any transportation company and any person, including the master, operator and owner of a vessel, aircraft, train or bus arriving in Singapore, who —

(*a*) has knowingly signed on the ship's articles or brought to Singapore as a member of the crew of the vessel, aircraft, train or bus any person with intent to permit that person to enter Singapore contrary to the provisions of this Act or the regulations; or

[Act 31 of 2023 wef 31/07/2025]

(*b*) represents to an immigration officer that that person is a bona fide member of the crew of the vessel, aircraft, train or bus,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $4,000 and not less than $200 in respect of each such person.

[Act 31 of 2023 wef 31/07/2025]

Security to prevent unlawful landing

43.—(1) An immigration officer may demand security from the master, operator, owner, charterer or agent or consignee of any vessel, aircraft, train or bus from which the immigration officer has reasonable grounds to believe that any person is about to disembark in or enter Singapore in contravention of the provisions of this Act or the regulations, and may refuse to release the vessel, aircraft, train or bus from examination until the security is furnished.

[Act 31 of 2023 wef 31/07/2025]

(1A) Despite subsection (1), an immigration officer may demand security from the master, operator, owner, charterer or agent of any vessel to ensure that no member of the crew of the vessel disembarks in or enters Singapore in contravention of the provisions of this Act or the regulations, and may refuse to release the vessel from examination until the security is furnished.

[Act 31 of 2023 wef 31/07/2025]

(2) The Controller may, if satisfied that any person has disembarked in or entered Singapore from any vessel, aircraft, train or bus, in respect of which security has been furnished under subsection (1) or (1A), in contravention of any provisions of this Act or the regulations, direct the forfeiture of the security or any part thereof.

[Act 31 of 2023 wef 31/07/2025]

(3) The Controller must not direct the forfeiture of any security under subsection (2) if he or she is satisfied that the master, operator, owner, charterer, agent or consignee took every reasonable precaution to prevent any person from so disembarking in or entering Singapore.

[Act 31 of 2023 wef 31/07/2025]

(4) The security under subsection (1) or (1A) shall be given in such manner and form as the Controller may determine and may be by bond, guarantee, cash deposit or any other method, or by 2 or more different methods.

Reports as to persons failing to continue their journey

44.—(1) Where any through passenger on or member of the crew of any vessel, aircraft or train fails to continue his or her journey in the vessel, aircraft or train in circumstances from which it may reasonably be inferred that the passenger or member of the crew has remained in Singapore, the master of the vessel, aircraft or train (as the case may be) must notify an immigration officer or a police officer of the failure of the passenger or member of the crew to continue his or her journey.

(2) A master of a vessel, an aircraft or a train who fails to comply with subsection (1) shall be guilty of an offence.

Repatriation

45.—(1) Any person residing in Singapore who —

(*a*) is not a citizen of Singapore;

(*b*) is by reason of destitution, infirmity or mental incapacity, unable to obtain employment or to support himself or herself and his or her family (if any);

(*c*) is unable to pay the cost of his or her passage and of the passages of his or her family (if any) to the country of his or her birth or citizenship; and

(*d*) is or is likely to become a charge upon the public or on a charitable institution,

may apply to the Controller for the repatriation of himself or herself and his or her family (if any) at the cost of the Government.

(2) Upon an application under subsection (1), if the Controller is satisfied, after such inquiry as he or she thinks necessary, that the person has or is about to become a charge on the public or on a charitable institution and is unable to pay the cost of the repatriation of himself or herself and his or her family (if any) and that no government, organisation, company or person is liable or willing to pay the cost of repatriation, the Controller may authorise the payment of the cost subject to the condition specified in subsection (3).

(3) Any person repatriated at the cost of the Government must enter into an undertaking, in such form as may be prescribed, that he or she will not return to Singapore without the written sanction of the Controller.

(4) Such sanction is conditional upon the person refunding to the Controller all costs and charges incurred in the repatriation of the person and his or her family (if any) and is subject to such other conditions as the Controller may consider expedient.

(5) Any person repatriated at the cost of the Government under this section who enters or attempts to enter Singapore without the sanction of the Controller under subsection (3), or who having entered Singapore with such sanction, fails or neglects to comply with any condition upon which the sanction was given, shall be guilty of an offence.

Masters, owners, etc., liable for expenses

46.—(1) If any person —

(*a*) enters Singapore from any vessel, aircraft, train or bus contrary to the provisions of this Act or the regulations;

[Act 31 of 2023 wef 31/07/2025]

(*b*) disembarks from any vessel on which he or she has been re-embarked or to which he or she has been returned under section 19, 20 or 24; or

(*c*) arrives at any authorised airport, authorised train checkpoint or authorised point of entry in Singapore in

any aircraft, train or bus (as the case may be) and is required to leave Singapore under section 25, 25A or 26, as the case may be,

the master, operator, owner, charterer and agent thereof shall be jointly and severally liable for all expenses incurred by the Government in respect of the detention and maintenance of the person and his or her removal from Singapore.

[18/2012]

[Act 31 of 2023 wef 31/07/2025]

(2) The expenses are recoverable as a debt due to the Government from the master, operator, owner, charterer and agent of the vessel, aircraft, train or bus jointly and severally.

[Act 31 of 2023 wef 31/07/2025]

Obligation to afford free passage

47.—(1) When an order of removal is made under the provisions of this Act in respect of any person who has entered Singapore contrary to the provisions of this Act or the regulations, and the person was brought to Singapore in a vessel, an aircraft, a train or a bus, the master of the vessel, aircraft, train or bus, and also the master of any vessel, aircraft, train or bus belonging to the same owner, operated by the same operator or chartered by the same charterer, must, if required in writing by the Controller, receive the person on board his or her vessel, aircraft, train or bus and afford the person free of charge a passage to the port or place at which the person embarked for Singapore or to any other port or place designated by the Controller and proper accommodation and maintenance during the voyage, flight or journey.

[Act 31 of 2023 wef 31/07/2025]

(2) No master shall be liable under subsection (1) unless the order of removal has been made by the Controller within 12 months from the date on which the person entered Singapore.

(3) A master of a vessel, an aircraft, a train or a bus who fails to comply with this section shall be guilty of an offence.

[Act 31 of 2023 wef 31/07/2025]

Seizure of moneys for purposes of repatriation, etc.

47A.—(1) A specified immigrant is liable to pay to the Government a sum sufficient to cover all expenses incurred by the Government in connection with the detention, maintenance, medical treatment and removal from Singapore of himself or herself and his or her dependants.

[Act 31 of 2023 wef 31/12/2024]

(2) For the purposes of subsection (1), the Controller may order a specified immigrant to be searched and that all moneys found on him or her when so searched be seized and used by the Controller to meet the expenses which have been incurred or may be incurred by the Government under that subsection.

[Act 31 of 2023 wef 31/12/2024]

(3) Where any sum seized under subsection (2) is in excess of the total amount of expenses for which the specified immigrant is liable under subsection (1), the balance of the moneys must be returned to him or her.

[Act 31 of 2023 wef 31/12/2024]

(4) The Controller may seize moneys under subsection (2) even though the specified immigrant has not been charged with nor convicted of an offence.

[Act 31 of 2023 wef 31/12/2024]

(5) Any person who claims to be the legal owner of any moneys seized under subsection (2) (other than the specified immigrant from whom the moneys were seized) may, within 6 years from the date of seizure, apply to the Controller in such form and manner as may be prescribed for the moneys seized to be returned to him or her.

[Act 31 of 2023 wef 31/12/2024]

(6) Despite the provisions of any written law, the moneys seized under subsection (2) (except any excess moneys which have been returned to the specified immigrant under subsection (3)) shall not be liable to be garnished, attached, sequestered or levied upon for or in respect of any debt or claim, other than to meet the expenses referred to in subsection (1) or any claim made under subsection (5).

[Act 31 of 2023 wef 31/12/2024]

(7) In this section, "specified immigrant" means —

(*a*) a prohibited immigrant; or

(*b*) a person who is ordered to be removed from Singapore under section 32(1), 33(1), 33A(1), 36(3) or 57(3).

[Act 31 of 2023 wef 31/12/2024]

Power to detain vessel

48.—(1) The Controller may by writing under his or her hand authorise the Director of Marine to detain any vessel in connection with which an offence under this Act is reasonably believed to have been or to be about to be committed, and the vessel may then be detained either at the place where it is found or at any place to which the Controller may order it to be brought.

(1A) The Controller must give notice to the master, operator, owner, charterer or agent of the vessel of the detention of the vessel.

[Act 31 of 2023 wef 31/07/2025]

(2) For the purposes of the detention and other lawful dealing with the vessel, the Director of Marine has power to muster the crew and may, if he or she considers it necessary to do so, place a police guard on board.

(3) The detention is for safe custody only, and ceases if a bond with 2 sufficient sureties to the satisfaction of the Controller is given by the master, operator, owner, charterer or agent of the vessel for the payment of any fine, costs, expenses or charges incurred under this Act in respect of any offence or default thereunder.

[Act 31 of 2023 wef 31/07/2025]

(4) If default is made in the payment of any such fine, costs, expenses or charges, the Director of Marine may seize the vessel and the vessel is to be declared forfeited to the Government by order of a court of competent jurisdiction upon the application of the Attorney-General.

(4A) Any vessel so forfeited is to be sold free of all encumbrances.

(5) The proceeds of sale of a vessel under this section must, despite any rule of law relating to priority of claims, be applied first in payment of any fine, costs, expenses or charges incurred under this Act and of any costs incurred in and about the sale and the proceedings leading thereto, and the balance must be paid to the

owner of the vessel or other person lawfully entitled to the proceeds thereof.

(6) Section 3(1)(*r*) of the High Court (Admiralty Jurisdiction) Act 1961 is to be construed as extending to any claim in respect of a liability incurred by the owner of a vessel under this Act.

Power to seize, detain and forfeit vessels below 200 tons or vehicles

49.—(1) Any vessel below 200 tons or any vehicle that is used, or in respect of which there is reasonable cause to suspect that it has been or that it is about to be used, in the commission of any offence under this Act or the regulations may be seized and detained at any place either on land or in the territorial waters of Singapore —

(*a*) by the Controller, or any immigration officer authorised in that behalf by the Controller in writing under his or her hand; or

(*b*) by any police officer authorised in that behalf by a Deputy Commissioner of Police in writing under his or her hand.

[18/2012]

(2) The seizing officer must immediately give written notice of the seizure and the grounds thereof to the operator, owner, charterer or agent of the vehicle or vessel so seized or detained, either by delivering the notice to the operator, owner, charterer or agent in person or by post at that person's place of office or abode, if known.

[Act 31 of 2023 wef 31/07/2025]

(3) The notice under subsection (2) is not required to be given where the seizure or detention is made in the presence of or with the knowledge of the offender, or the operator or owner, or the agent of the offender, operator or owner, as the case may be.

[Act 31 of 2023 wef 31/07/2025]

(4) Any vehicle or vessel liable to seizure or detention under subsection (1) is liable to forfeiture.

(5) An order for the forfeiture or for the release of any vehicle or vessel liable to forfeiture under this section is to be made by the court before which the prosecution with regard thereto has been held.

(6) Where, upon an application by the Public Prosecutor, it is proved to the satisfaction of a court that an offence under this Act or the regulations has been committed and that the vehicle or vessel was used in the commission of the offence, the court is to make an order for the forfeiture of the vehicle or vessel, even though no person may have been charged with or convicted of the offence.

(6A) No vehicle or vessel is to be forfeited under this section if it is established by the owner thereof that the vehicle or vessel was unlawfully in the possession of another person without the owner's consent.

(7) The Controller may sell any vehicle or vessel forfeited under this section.

(8) The proceeds of the sale must, after payment of the expenses of the sale, be applied in payment of any fine, costs or charges incurred under this Act and any balance remaining must be paid into the Consolidated Fund.

Power of interrogation

50.—(1) Any person reasonably believed to be a person liable to removal from Singapore under any of the provisions of this Act may be questioned by an immigration officer.

(2) The person must fully and truthfully answer all questions and enquiries put to the person by the immigration officer tending, directly or indirectly, to establish the person's identity, nationality or occupation or bearing on any of the restrictions contained in this Act or the regulations, and shall disclose and produce to that officer on demand all documents in the person's possession relating to those matters.

(3) All such answers and documents are admissible in evidence in any proceedings under this Act against the person making or producing the same.

(4) Nothing in this section is to be construed as rendering any such answers inadmissible in any other proceedings in which they would otherwise be admissible.

Power of search and arrest for offence under Act

51.—(1) Any immigration officer or any other officer generally or specially authorised in writing in that behalf by the Controller, and any officer of the Singapore Customs acting under the instructions of such immigration officer, and any police officer may without a warrant and with or without assistance —

(*a*) enter and search any premises; and

(*b*) stop and search any vehicle, train, vessel or person, or search any aircraft, whether in a public place or not,

if he or she has reason to believe that any evidence of the commission of an offence under this Act or the regulations is likely to be found on the premises or person or in the vehicle, vessel, aircraft or train, and may seize any evidence so found.

[6/2018]

(2) A woman must not be searched under this section except by a woman.

(3) Any police officer, immigration officer or customs officer may arrest without warrant any person whom the officer reasonably believes has committed an offence under this Act or the regulations.

(4) Where any person is arrested by an immigration officer or customs officer under subsection (3), the immigration officer or customs officer must comply with sections 67 and 68 of the Criminal Procedure Code 2010 as if he or she were a police officer.

[15/2010]

Power of search and arrest for offences committed within authorised area, etc.

51AA.—(1) An immigration officer or a police officer may, without a warrant and with or without assistance, stop and search any vehicle, train, vessel or person, or search any aircraft, within or in the vicinity of an authorised area, if the immigration officer or police officer has reason to believe that —

(*a*) a relevant offence has been, or is likely to be, committed within or in the vicinity of the authorised area; and

(*b*) any evidence of the commission of the relevant offence is likely to be found on the person or in the vehicle, train, vessel or aircraft.

[6/2018]

(2) An immigration officer or a police officer may seize any evidence so found under subsection (1).

[6/2018]

(3) A woman must not be searched under this section except by a woman.

[6/2018]

(4) An immigration officer or a police officer may require any person subject to a search under subsection (1) to undergo any form of security screening, including doing one or more of the following:

(*a*) to walk through a walk-through detector;

(*b*) to pass the person's personal property through an X-ray machine;

(*c*) to allow the immigration officer or police officer to pass a hand-held scanner in close proximity to the person;

(*d*) to allow the immigration officer or police officer to pass a hand-held scanner in close proximity to the person's personal property.

[6/2018]

(5) If an immigration officer has reason to believe that a relevant offence has been committed within or in the vicinity of an authorised area, the immigration officer may examine orally any person who appears to be acquainted with the facts and circumstances of the relevant offence.

[6/2018]

(6) The person mentioned in subsection (5) is bound to state truly the facts and circumstances with which the person is acquainted, except that the person need not say anything that might expose the person to a criminal charge, penalty or forfeiture.

[6/2018]

(7) A statement made by a person mentioned in subsection (5) must —

(*a*) be reduced to writing;

(*b*) be read over to the person;

(*c*) if the person does not understand English, be interpreted to the person in a language that the person understands; and

(*d*) after correction (if necessary), be signed by the person.

[6/2018]

(8) An immigration officer may arrest without warrant any person if the immigration officer has reason to believe that a relevant offence (being also an arrestable offence) has been committed within or in the vicinity of an authorised area.

[6/2018]

(9) An immigration officer may arrest any person who, within or in the vicinity of an authorised area, is accused of committing or commits in the view or presence of the immigration officer, a non-arrestable offence if, on the demand of the immigration officer —

(*a*) the person refuses to give his or her name and residential address; or

(*b*) the person gives a residential address outside Singapore, or a name or residential address which the immigration officer has reason to believe is false.

[6/2018]

(10) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(11) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(12) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(13) An immigration officer, who has reasonable grounds to suspect that a relevant offence may be committed within or in the vicinity of an authorised area, may intervene for the purpose of preventing and must, to the best of the immigration officer's ability, use all lawful means to prevent the commission of the relevant offence.

[6/2018]

(14) Where a relevant offence is committed within or in the vicinity of an authorised area, an immigration officer may, for the purpose of

preserving any crime scene, cordon off any area where the relevant offence is committed.

[6/2018]

(15) Nothing in this section affects any other power exercisable by an immigration officer under any other written law.

[6/2018]

(16) In this section —

[*Deleted by Act 31 of 2023 wef 31/12/2024*]

"relevant offence" means an offence under any written law (other than this Act or the regulations).

[6/2018]

Power to arrest other persons within authorised area, etc.

51AB.—(1) This section applies to a person within or in the vicinity of an authorised area who —

(*a*) has an arrest warrant issued against him or her;

(*b*) may be arrested by a police officer without a warrant under section 64(1) of the Criminal Procedure Code 2010; or

(*c*) is concerned in a specified offence.

(2) For the purposes of subsection (1)(*c*) and section 51AD, a person who is concerned in a specified offence includes the following:

(*a*) a person who is reasonably suspected of having been involved in the specified offence;

(*b*) a person against whom a reasonable complaint has been made or credible information has been received, of the person having been concerned or involved in the specified offence.

(3) Despite any other written law, an immigration officer may —

(*a*) arrest a person mentioned in subsection (1)(*a*) even though the arrest warrant issued against that person is not directed to the immigration officer; or

(*b*) arrest a person mentioned in subsection (1)(*b*) or (*c*) without a warrant.

(4) Despite any other written law, if any vehicle within or in the vicinity of an authorised area —

(*a*) is driven by, or under the control of, a person mentioned in subsection (1); or

(*b*) is owned by, and includes as its passenger, that person,

an immigration officer may, without a warrant and with or without assistance, stop, search and detain the vehicle.

(5) In this section and section 51AD —

"prescribed law enforcement agency" means any authority or person, charged with the duty of investigating offences or charging offenders under any written law (other than this Act or the regulations), prescribed for the purposes of this section and section 51AD by the Minister;

"specified offence" means any offence under any written law (other than this Act or the regulations) by or under which an officer of, or a person appointed by, a prescribed law enforcement agency may arrest the person without a warrant.

[Act 31 of 2023 wef 31/12/2024]

Power to detain stolen vehicle within authorised area, etc.

51AC.—(1) This section applies to a vehicle that —

(*a*) is within or in the vicinity of an authorised area; and

(*b*) satisfies either or both of the following conditions:

(i) the Commissioner of Police or a police officer is satisfied that the vehicle has been stolen or illegally taken or used;

(ii) the vehicle is liable to be seized by a police officer under section 95(1) of the Road Traffic Act 1961.

(2) Despite any other written law, an immigration officer may, without warrant and with or without assistance —

(*a*) stop and seize the vehicle; and

(*b*) detain the vehicle for a period not exceeding 24 hours in any suitable place of detention within or in the vicinity of an authorised area.

(3) If an immigration officer seizes and detains the vehicle under subsection (2), the immigration officer must —

(*a*) immediately inform a police officer of the seizure;

(*b*) hand over the vehicle to a police officer; and

(*c*) inform the driver or person in charge of the vehicle of the basis on which the vehicle is seized and detained.

(4) Despite any other written law, if —

(*a*) the vehicle satisfies the condition mentioned in subsection (1)(*b*)(i); and

(*b*) the driver or person in charge of the vehicle is within or in the vicinity of an authorised area,

an immigration officer may, without warrant, arrest the driver or person.

[Act 31 of 2023 wef 31/12/2024]

Procedure for arrest

51AD.—(1) An officer who makes an arrest under this Act —

(*a*) must touch or confine the body of the person to be arrested unless the person submits to arrest by word or action;

(*b*) may use all reasonable means necessary to make the arrest if the person to be arrested forcibly resists or tries to evade arrest; and

(*c*) may search the person.

(2) A person arrested must not be restrained more than is necessary to prevent the person's escape.

(3) A woman must not be searched under subsection (1)(*c*) except by a woman.

(4) If an immigration officer arrests a person under section 51AA, 51AB or 51AC, the immigration officer —

(*a*) must immediately inform an authorised officer of the arrest;

(*b*) must hand over the person to an authorised officer; and

(*c*) may detain the person for a period not exceeding 24 hours in any suitable place of detention within or in the vicinity of an authorised area pending the handing over of the person under paragraph (*b*).

(5) When a person is handed over to an authorised officer under subsection (4)(*b*), the authorised officer must re-arrest the person if —

(*a*) in the case of an arrest under section 51AA(8) — the authorised officer has reason to believe that a relevant offence mentioned in section 51AA(8) has been committed;

(*b*) in the case of an arrest under section 51AA(9) — the authorised officer has reason to believe that the person has committed the non-arrestable offence mentioned in section 51AA(9) and the person —

(i) refuses to give his or her name and residential address when required by the authorised officer; or

(ii) gives a residential address outside Singapore, or a name or residential address that the authorised officer has reason to believe is false;

(*c*) in the case of an arrest under section 51AB(3) read with section 51AB(1)(*a*) — the authorised officer is satisfied that an arrest warrant has been issued against the person;

(*d*) in the case of an arrest under section 51AB(3) read with section 51AB(1)(*b*) — the authorised officer has reason to believe that the person is a person mentioned in section 64(1) of the Criminal Procedure Code 2010;

(*e*) in the case of an arrest under section 51AB(3) read with section 51AB(1)(*c*) — the authorised officer has reason to believe that the person is concerned in a specified offence; or

(*f*) in the case of an arrest under section 51AC(4) — the authorised officer has reason to believe that the vehicle in question has been stolen or illegally taken or used.

(6) If the authorised officer does not re-arrest under subsection (5) a person handed over to the authorised officer under subsection (4)(*b*), the person must be released.

(7) In this section, "authorised officer", in relation to a person arrested by an immigration officer, means —

(*a*) if the person is arrested under section 51AA(8) or (9) or 51AC(4) — a police officer;

(*b*) if an arrest warrant has been issued against the person and the person is arrested under section 51AB(3) read with section 51AB(1)(*a*) — a person who may execute the arrest warrant under section 69 of the Criminal Procedure Code 2010;

(*c*) if the person may be arrested by a police officer without a warrant under section 64(1) of the Criminal Procedure Code 2010 and the person is arrested under section 51AB(3) read with section 51AB(1)(*b*) — a police officer; or

(*d*) if the person is concerned in a specified offence and the person is arrested under section 51AB(3) in relation to the specified offence —

(i) a police officer; or

(ii) an officer of, or a person appointed by, a prescribed law enforcement agency,

who is empowered by or under any written law (other than this Act or the regulations) to arrest the person without a warrant in relation to the specified offence.

[Act 31 of 2023 wef 31/12/2024]

Power to search person in immigration depot

51AE.—(1) An immigration officer may search a person who is detained, or required to remain, in an immigration depot under this Act or any other written law.

(2) A woman must not be searched under subsection (1) except by a woman.

[Act 31 of 2023 wef 31/12/2024]

Bail and bond

51AF.—(1) A person who has been arrested by a police officer, an immigration officer or a customs officer under section 51(3) may be released on bail or on personal bond granted by any immigration officer.

(2) Division 5 (Bails and bonds) of Part 6 of the Criminal Procedure Code 2010 applies to the release of a person on bail or on personal bond under this section or section 92 or 93 of the Criminal Procedure Code 2010 (as the case may be) with the following modifications:

(*a*) any reference to "officer", "police officer" or "police officer of or above the rank of sergeant" is to be read to include an immigration officer;

(*b*) the reference to the Commissioner of Police in section 92(1) of the Criminal Procedure Code 2010 is to be read to include the Controller.

[Act 16 of 2024 wef 17/06/2024]

Provision of information by Housing and Development Board

51A.—(1) Any immigration officer duly authorised by the Controller may, if the immigration officer considers it necessary for administering or enforcing any requirement under this Act or the regulations relating to the reporting of the place of residence of any person or any change thereof, by written notice require the Board to disclose any secret or confidential document or information which is in the possession or control of the Board.

[5/2010]

(2) The Board must disclose the document or information required by an immigration officer under subsection (1) despite any obligation as to secrecy or confidentiality imposed by any law.

[5/2010]

(3) Any immigration officer to whom any document or information has been disclosed under subsection (2) must not disclose that document or information to any other person except —

(*a*) to another law enforcement officer for the performance of his or her official duties in administering or facilitating the administration of any written law, provided the Board consents to such disclosure; or

(*b*) for the purpose of criminal proceedings.

[5/2010]

(4) Any immigration officer who contravenes subsection (3), or any law enforcement officer who discloses any document or information obtained under that subsection to any other person other than for the purpose specified in paragraph (*a*) or (*b*) of that subsection, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,000 or to imprisonment for a term not exceeding 12 months or to both.

[5/2010]

(5) In this section, unless the context otherwise requires —

"Board" means the Housing and Development Board established under section 3 of the Housing and Development Act 1959;

"disclose", in relation to any document or information, includes allowing access to such document or information;

"law enforcement officer" means —

(*a*) any police officer;

(*b*) any immigration officer; or

(*c*) any registration officer within the meaning of the National Registration Act 1965.

[5/2010]

Person registered under Enlistment Act 1970

52.—(1) An immigration officer may prevent any person from leaving Singapore and require the person to surrender the person's passport to the immigration officer if the immigration officer has reason to believe that the person is a person subject to the Enlistment Act 1970 who is not exempted from the requirement for an exit

permit and is attempting to leave Singapore without an exit permit issued by the proper authority.

[Act 10 of 2024 wef 01/05/2024]

(2) In this section, "person subject to the Enlistment Act 1970" and "proper authority" have the same meaning as "person subject to this Act" and "proper authority", respectively, in section 2 of the Enlistment Act 1970.

[Act 10 of 2024 wef 01/05/2024]

53. [*Repealed by Act 26 of 2022 wef 12/06/2023*]

Counterfoils, etc., to be prima facie evidence

54. In any proceedings under this Act or at the hearing of any charge for an offence under this Act, any counterfoil or counterpart of any permit, pass, certificate or other document issued under this Act or the regulations and purporting to be signed by the Controller or by an immigration officer generally or specially authorised in that behalf by the Controller may be produced in evidence without further proof and is prima facie evidence of the facts therein stated and is, unless the contrary be proved, presumed to be a true statement of the relevant contents of the permit, pass, certificate or other document to which it relates.

Regulations

55.—(1) The Minister may make regulations not inconsistent with the provisions of this Act for all or any of the following purposes:

(*a*) prescribing anything that is to be or may be prescribed under the provisions of this Act;

(*b*) prescribing the forms to be used for the purposes of this Act;

(*c*) providing for and regulating matters relating to permits, passes (including classes of passes) and certificates, including (without limitation) the Controller's powers —

(i) relating to an application for and the issue of a permit, pass or certificate, and the cancellation of a pass;

(ii) to decide the validity period for, and vary the validity period of, a pass or certificate;

(iii) to impose conditions on a pass or certificate at the time of or after the issue of the pass or certificate, and vary or revoke any condition of the pass or certificate; and

(iv) to apply section 11(5A) with the necessary modifications for a class of pass holders or certificate holders;

[Act 31 of 2023 wef 31/12/2024]

(*ca*) prescribing the duties and responsibilities of a holder of a permit, pass or certificate;

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(*d*) providing for the payment and recovery of any expenses incurred by the Government in connection with the detention, maintenance, medical treatment and removal from Singapore of any person under the provisions of this Act;

(*e*) prescribing the place where, the person to whom and the manner in which application to enter Singapore must be made;

(*ea*) providing for the circumstances for granting Singapore visas and the conditions subject to which a Singapore visa may be granted;

(*eb*) providing for the manner in which personal identifiers (within the meaning of Part 5A) are obtained and kept;

(*f*) prescribing the procedure to be followed by persons entering Singapore;

(*g*) prescribing the procedure to be followed by authorities in the exercise of their functions under this Act;

(*ga*) providing for the taking or recording of any personal identifier of —

(i) any person who applies for or has been issued with a permit or pass;

(ii) any person suspected or have been convicted of an offence under section 5, 6(1), 15 or 36 or the regulations;

(iii) any prohibited immigrant;

(iv) any person (other than a citizen of Singapore) who transits through Singapore; or

(v) any applicant for, or holder of, a Singapore visa;

(*h*) [*Deleted by Act 31 of 2023 wef 31/12/2024*]

(*i*) providing for a deposit or security to be made or given by or in respect of any person as a condition of, or for the grant of, an entry permit, a re-entry permit or a pass to him or her and the conditions subject to which the deposit or security may be forfeited;

(*j*) prescribing the fees to be charged upon the issue of any entry permit, re-entry permit, certificate, pass, Singapore visa or document issued or to be issued under this Act or the regulations and the processing of any application for the issue of such entry permit, re-entry permit, certificate, pass, Singapore visa or document;

(*ja*) prescribing different fees for different classes of applicants for any entry permit, re-entry permit, certificate, pass, Singapore visa or document issued or to be issued under this Act or the regulations, and any application fee so prescribed need not bear any relationship to the cost of issuing or processing the entry permit, re-entry permit, certificate, pass, Singapore visa or document;

(*k*) prescribing the penalties of imprisonment for a term not exceeding 2 years or a fine not exceeding $3,000 or both for the breach of the regulations;

(*ka*) prescribing the penalties for the late payment of any fees prescribed under the regulations;

(*kb*) providing for the maintenance and management of any immigration depot, including the care, control, discipline and medical examination of any person in an immigration

depot, and making different provisions for different immigration depots;

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(*l*) generally for the better carrying into effect of the purposes and provisions of this Act.

[18/2012; 6/2018]

(2) All regulations made under this section must be presented to Parliament as soon as possible after publication in the *Gazette*.

(3) If a resolution is passed within the next 3 months after the regulations are so presented disapproving the regulations or any part thereof, the regulations or such part thereof (as the case may be) then cease to have effect but without affecting the validity of anything previously done thereunder.

Power to exempt from provisions of this Act

56.—(1) Despite anything in this Act, the Minister may by order exempt any person or class of persons, either absolutely or conditionally, from all or any of the provisions of this Act and may in that order provide for any presumptions necessary in order to give effect thereto.

(2) Every order made under this section which relates to a class of persons shall be published in the *Gazette*.

Offences

57.—(1) Any person who —

(*a*) attempts unlawfully to enter Singapore in contravention of any provision of this Act, other than section 6(1), or the regulations;

(*aa*) abets any person to enter Singapore in contravention of the provisions of this Act or the regulations;

(*b*) abets any person to leave Singapore in contravention of the provisions of this Act or the regulations;

(*c*) engages in the business or trade of conveying to or out of Singapore in or on any vehicle, vessel, aircraft or train any

person whom he or she knows or has reasonable grounds for believing is a prohibited immigrant;

(*d*) harbours a person —

(i) whom the defendant knows has acted in contravention of the provisions of this Act or the regulations;

(ii) with reckless disregard as to whether he or she has acted in contravention of the provisions of this Act or the regulations; or

(iii) negligently failing to ascertain as to whether he or she has acted in contravention of the provisions of this Act or the regulations;

(*e*) employs any person who has acted in contravention of section 6(1), 15 or 36(1) or the regulations;

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(*f*) makes or causes to be made any false report, false statement or false representation in connection with any obligation imposed by the provisions of this Act or the regulations;

(*g*) resists or obstructs, actively or passively, any immigration officer in the execution of the immigration officer's duty;

(*h*) without lawful excuse hinders or obstructs any removal under the provisions of this Act;

(*i*) gives, sells or parts with possession of any entry or re-entry permit, pass, Singapore visa or certificate in order that it may be used in contravention of paragraph (*j*);

(*j*) uses any entry or re-entry permit, pass, Singapore visa or certificate issued to any other person as if it had been lawfully issued to himself or herself;

(*k*) obtains or attempts to obtain any entry permit, re-entry permit, pass, Singapore visa or certificate for himself or herself, or for any other person, by giving information (whether in or outside Singapore) which the firstmentioned person knows —

(i) is false or misleading in a material particular; or

(ii) omits any matter or thing without which the information is misleading in a material particular;

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(*ka*) obtains or attempts to obtain any entry permit, re-entry permit, pass, Singapore visa or certificate for himself or herself, or for any other person, by giving information (whether in or outside Singapore) that —

(i) is false or misleading in a material particular; or

(ii) omits any matter or thing without which the information is misleading in a material particular;

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(*l*) uses or without lawful authority has in the person's possession any forged, unlawfully altered or irregular entry or re-entry permit, pass, Singapore visa or certificate or other document issued under this Act or the regulations, or any permit, pass, Singapore visa or certificate or other document so issued on which any endorsement has been forged or unlawfully altered;

(*m*) makes or has in the person's possession, without lawful authority, or traffics in any electronic template, stamp, seal, plate, paraphernalia or other instrument knowing that the electronic template, stamp, seal, plate, paraphernalia or instrument is or is intended to be used for forging or unlawfully altering any endorsement made under this Act or the regulations on any passport, entry or re-entry permit, pass, Singapore visa or certificate or other document issued or to be issued under this Act or the regulations; or

(*n*) makes or has in the person's possession, without lawful authority, or traffics in any device, machine, paper, material or other thing knowing that the device, machine, paper, material or thing is or has been specially designed or adapted for making a forged entry or re-entry permit, pass, Singapore visa or certificate or other document issued under this Act or the regulations,

shall be guilty of an offence.

(1AAA) An offence under subsection (1)(*ka*) is a strict liability offence.

[Act 31 of 2023 wef 31/12/2024]

(1AA) A person who is guilty of an offence under subsection (1) —

(*a*) in the case of an offence under subsection (1)(*a*), shall be punished with imprisonment for a term not exceeding 2 years and shall also be liable to a fine not exceeding $4,000;

(*b*) in the case of an offence under subsection (1)(*aa*), shall be punished with imprisonment for a presumptive minimum term of not less than 6 months and not more than 2 years, and —

(i) where the offence is abetted within the meaning of section 107(1)(*b*) or (*c*) of the Penal Code 1871 and the offence abetted is punishable with caning, shall also be punished with caning with not less than 3 strokes; or

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(ii) in any other case, shall also be liable to a fine not exceeding $6,000;

(*c*) subject to subsection (1A), in the case of an offence under subsection (1)(*b*) or (*e*), shall be punished with imprisonment for a presumptive minimum term of not less than 6 months and not more than 2 years and shall also be liable to a fine not exceeding $6,000;

(*d*) in the case of an offence under subsection (1)(*c*), shall be punished with imprisonment for a term of not less than 2 years and not more than 5 years and shall also be punished with caning with not less than 3 strokes;

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(*e*) in the case of an offence under subsection (1)(*d*)(i) or (ii), shall on conviction be punished with imprisonment for a presumptive minimum term of not less than 6 months and

not more than 2 years and shall also be liable to a fine not exceeding $6,000;

(*f*) in the case of an offence under subsection (1)(*d*)(iii), shall be liable on conviction to a fine not exceeding $6,000 or to imprisonment for a term not exceeding 12 months or to both;

(*g*) in the case of an offence under subsection (1)(*f*), (*g*), (*h*), (*i*), (*j*) or (*l*), shall be liable on conviction to a fine not exceeding $4,000 or to imprisonment for a term not exceeding 12 months or to both;

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(*ga*) in the case of an offence under subsection (1)(*k*), shall be liable on conviction to a fine not exceeding $8,000 or to imprisonment for a term not exceeding 12 months or to both;

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(*gb*) in the case of an offence under subsection (1)(*ka*), shall be liable on conviction to a fine not exceeding $4,000; and

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(*h*) in the case of an offence under subsection (1)(*m*) or (*n*), shall be liable on conviction to a fine not exceeding $8,000 or to imprisonment for a term not exceeding 5 years or to both.

[15/2010; 18/2012; 15/2019; S 22/89; S 227/95]

(1A) Where, in the case of any offence under subsection (1)(*e*), it is proved to the satisfaction of the court that the defendant has at the same time employed more than 5 immigration offenders, the defendant shall be punished with caning in addition to the punishment prescribed for that offence.

[15/2010]

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(1B) Where, by virtue of section 325(1)(*a*) or (*b*) of the Criminal Procedure Code 2010, the defendant referred to in subsection (1A) is not punishable with caning, he shall, in lieu of caning, be punished with a fine not exceeding $10,000.

[15/2010]

[Act 31 of 2023 wef 31/12/2024]

(2) Where a body corporate is guilty of an offence under subsection (1)(*e*) and that offence is proved to have been committed with the authority, consent or connivance of any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he or she, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(2A) Where a body corporate is guilty of an offence under this Act for which a period of mandatory imprisonment or mandatory caning is prescribed, the body corporate shall, in lieu of imprisonment or caning, be liable on conviction to a fine of not less than $100,000 and not more than $200,000.

(3) Any person unlawfully entering or re-entering or attempting unlawfully to enter or re-enter Singapore or unlawfully remaining in Singapore shall, whether or not any proceedings are taken against him or her in respect of that offence, be liable to be removed from Singapore by order of the Controller.

(3A) If a person is ordered to be removed from Singapore under subsection (3), the Controller may repatriate the person to —

(*a*) the person's place of embarkation;

(*b*) the country of the person's birth or citizenship; or

(*c*) any other place designated by the Controller.

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(4) Where the master of any vessel is charged with an offence under this Act, the clearance of the vessel may be refused until the charge has been heard and the fine (if any) imposed has been paid.

(5) Where, in any proceedings under this Act or the regulations, it is proved that the defendant has failed to produce on demand by an immigration officer or a police officer —

(*a*) any valid permit, pass or certificate issued to him or her under this Act or the regulations;

(*b*) any other document accepted by the Controller as evidence that the defendant has entered or remained in Singapore lawfully; or

(*c*) any other evidence showing to the satisfaction of the Controller that the defendant is exempted from section 6(1),

it is presumed, until the contrary is proved, that he or she has (as the case may be) entered or re-entered or remained in Singapore unlawfully.

(6) Where, in any proceedings for an offence under subsection (1)(*c*), it is proved that the defendant has conveyed any prohibited immigrant in any vehicle, vessel, aircraft or train, it is presumed, until the contrary is proved, that he or she is engaged in the business or trade of conveying to Singapore in or on that vehicle, vessel, aircraft or train that prohibited immigrant knowing him or her to be, or having reasonable grounds for believing him or her to be, a prohibited immigrant.

(7) Where, in any proceedings for an offence under subsection (1)(*d*)(ii) or (iii), it is proved that the defendant has given shelter to an immigration offender, it is presumed, until the contrary is proved, that the defendant has harboured him or her with reckless disregard as to whether he or she is an immigration offender or negligently failing to ascertain as to whether he or she is an immigration offender, as the case may be.

(7A) In any proceedings for an offence under subsection (1)(*d*)(ii) or (iii), it is not a defence for the defendant to prove that the immigration offender harboured was in possession of a permit or pass issued to the immigration offender under this Act or the regulations unless the defendant further proves that he or she had exercised due diligence to ascertain that the permit or pass was at the material time valid under this Act or the regulations.

(7B) Where a defendant who is charged with an offence under subsection (1)(*d*)(ii) has rebutted the presumption that the defendant has harboured an immigration offender with reckless disregard as to whether he or she is such a person under subsection (7), the defendant

shall be liable to be charged with an offence under subsection (1)(*d*)(iii).

(7C) For the purpose of subsection (7A) —

(*a*) a defendant who is charged with an offence under subsection (1)(*d*)(ii) is not to be deemed to have exercised due diligence unless the defendant has carried out any 2 of the acts specified in subsection (7D); and

(*b*) a defendant who is charged with an offence under subsection (1)(*d*)(iii) is not to be deemed to have exercised due diligence unless the defendant has carried out all the acts specified in subsection (7D).

(7D) The acts referred to in subsection (7C), to be carried out by the defendant in relation to the immigration offender harboured, are —

(*a*) inspecting the permit or pass issued to the immigration offender under this Act or the regulations;

(*b*) checking the permit or pass to ascertain that the particulars on the passport of the immigration offender materially correspond with the particulars set out in the permit or pass;

(*c*) checking with —

(i) the Controller of Immigration or the Controller of Work Passes (as the case may be) that the permit or pass was valid at the material time; or

(ii) the employer to verify that the immigration offender is employed by the employer and that the particulars of the immigration offender correspond with the records of the employer, where the name of the employer of the immigration offender is specified in the permit or pass.

(8) Where an immigration offender is found at any premises or place, other than premises used solely for residential purposes, the occupier of the premises or place is presumed, until the contrary is proved, to have employed him or her knowing that he or she is an immigration offender.

(9) In any proceedings for an offence under subsection (1)(*e*), it is not a defence for the defendant to prove that the person employed by the defendant was in possession of a permit or pass issued to the person under this Act or the regulations unless the defendant further proves that the defendant had exercised due diligence to ascertain that the permit or pass was at the material time valid under this Act or the regulations.

(10) For the purpose of subsection (9), a defendant who is charged with an offence under subsection (1)(*e*) is not to be deemed to have exercise due diligence unless the defendant —

(*a*) has inspected the permit or pass issued to the person employed by the defendant;

(*b*) has checked the permit or pass to ascertain that the particulars on the passport of the person employed by the defendant materially correspond with the particulars set out in the permit or pass; and

(*c*) where the person employed by the defendant is a holder of a visit pass, has reasonable grounds for believing that the person had, at the material time, in force a work pass issued under the Employment of Foreign Manpower Act 1990 or had obtained the written consent of the Controller of Immigration.

(11) A person, being the owner, tenant or occupier of any premises or place referred to in subsection (8), must not knowingly permit or suffer such premises or place or any part thereof to be kept or used as a place or premises in which any person is employed in contravention of subsection (1)(*e*).

(12) Any person who contravenes subsection (11) shall be guilty of an offence and shall on conviction be punished with imprisonment for a term of not less than 6 months and not more than 2 years and shall also be liable to a fine not exceeding $6,000.

(12A) Where, in any proceedings for an offence under subsection (1)(*m*) of possession without lawful authority of any electronic template, stamp, seal, plate, paraphernalia or instrument, it is proved —

(*a*) that the electronic template, stamp, seal, plate, paraphernalia or instrument was in the custody or under the control of the defendant when it was used for forging or unlawfully altering an endorsement mentioned in that subsection; or

(*b*) that the defendant had in the defendant's possession the electronic template, stamp, seal, plate, paraphernalia or instrument which had been specially designed or adapted for forging or unlawfully altering an endorsement mentioned in that subsection,

it is presumed, until the contrary is proved, that the defendant knew that the electronic template, stamp, seal, plate, paraphernalia or instrument (as the case may be) was or would be used to forge or unlawfully alter an endorsement mentioned in that subsection.

[18/2012]

(12B) Where, in any proceedings for an offence under subsection (1)(*n*) of possession without lawful authority of any device, machine, paper, material or thing, it is proved —

(*a*) that the device, machine, paper, material or thing was in the custody or under the control of the defendant when it was used to make the forged entry or re-entry permit, pass, Singapore visa or certificate or other document issued under this Act or the regulations; or

(*b*) that the defendant had in the defendant's possession the device, machine, paper, material or thing which had been specially designed or adapted for making a forged entry or re-entry permit, pass, Singapore visa or certificate or other document issued under this Act or the regulations,

it is presumed, until the contrary is proved, that the defendant knew that the device, machine, paper, material or thing (as the case may be) was or had been specially designed or adapted for making a forged entry or re-entry permit, pass, Singapore visa or certificate or other document issued under this Act or the regulations.

[18/2012]

(12C) In subsection (1)(*m*) and (*n*), "traffic", in relation to any thing, means —

(*a*) to sell, deliver or distribute that thing; or

(*b*) to offer to do or to cause to be done any act mentioned in paragraph (*a*) in relation to that thing.

[18/2012]

(13) In this section and sections 57A and 57B, "immigration offender" means a person who has acted in contravention of section 6(1), 15 or 36(1) or the regulations.

[Act 31 of 2023 wef 31/12/2024]

(14) A reference to a permit or pass in subsections (7D) and (10) in relation to a person is a reference to —

(*a*) the original permit or pass issued (in a physical or an electronic form) to that person under this Act or the regulations; or

(*b*) an electronic copy, or a prescribed electronic record displaying the details, of that permit or pass which —

(i) is made available to that person on any prescribed electronic service; or

(ii) satisfies the prescribed requirements.

[Act 31 of 2023 wef 31/12/2024]

Prohibition of immigration offender entering or remaining at work place

57A.—(1) An occupier of a work place who has control of access to the work place must not permit any immigration offender to enter or remain at the work place.

(2) Where an immigration offender is found at a work place, it is presumed, until the contrary is proved, that the occupier of the work place —

(*a*) had control of access to the work place;

(*b*) had permitted the immigration offender to enter or remain at the work place; and

(*c*) had knowledge that he or she is an immigration offender.

(3) The presumptions provided for in subsection (2)(*b*) and (*c*) are not rebutted unless the defendant proves that the defendant had

exercised due diligence to prevent the immigration offender from entering or remaining at the work place.

(4) For the purposes of subsection (3), a defendant is not presumed to have exercised due diligence unless the defendant had taken all reasonable measures to prevent any immigration offender from entering or remaining at the work place, including all the measures prescribed under subsection (5) in respect of the work place.

(5) For the purposes of subsection (4), the Minister may, by notification in the *Gazette*, prescribe the measures that are required to be taken by the occupier of the work place.

(6) Any person who contravenes subsection (1) shall be guilty of an offence and shall be liable on conviction to a fine of not less than $15,000 and not more than $30,000 or to imprisonment for a term not exceeding 12 months or to both for each immigration offender found at the work place and, in the case of a second or subsequent conviction, to a fine of not less than $30,000 and not more than $60,000 or to imprisonment for a term not exceeding 2 years or to both for each immigration offender found at the work place.

(7) In this section —

"construction works" means the construction, extension, installation, carrying out, repair, maintenance, renewal, removal, alteration, dismantling or demolition of —

(*a*) any building, erection, edifice, structure, wall, fence or chimney, whether constructed wholly or partly above or below ground level;

(*b*) any road, motorway, harbour works, railway, cableway, canal or aerodrome;

(*c*) any drainage, irrigation or river control work;

(*d*) any electrical, water, gas or telecommunication works;

(*e*) any bridge, viaduct, dam, reservoir, earthworks, pipeline, sewer, aqueduct, culvert, drive, shaft, tunnel or reclamation,

and includes any works which form an integral part of, or are preparatory to, the works described in paragraphs (*a*) to (*e*), including site clearance, earth-moving, excavation, laying of foundation, site restoration and landscaping, and such other works or activities as the Minister may, by notification in the *Gazette*, specify to be construction works;

"occupier", in relation to a work place, means the principal contractor who undertakes any construction works at the work place and includes such other person as the Minister may, by notification in the *Gazette*, specify to be the occupier of the work place;

"principal contractor" means a person who has entered into a contract with an owner, a developer or a lessee of a property or an agent of one of those persons for the purpose of carrying out any construction works on the property;

"work place" means any place or premises where any construction works are being carried out and includes —

(*a*) all the land within the vicinity of the work place which are owned by the person for whom the construction works are being carried out and to which the principal contractor has control of access;

(*b*) any canteen, sleeping quarters, office and other structures or buildings erected on the work place; and

(*c*) such other place or premises as the Minister may, by notification in the *Gazette*, specify to be a work place.

Assisting, encouraging or inducing giving of shelter to immigration offenders

57B.—(1) Any person who, for or in expectation of any fee, gain or reward, assists, encourages or induces any other person to give shelter to any immigration offender shall, if the second-mentioned person gives shelter to the immigration offender in consequence of such assistance, encouragement or inducement, be guilty of an offence and shall on conviction be punished with imprisonment for a presumptive

minimum term of not less than 6 months and not more than 2 years and shall also be liable to a fine not exceeding $6,000.

[15/2019]

(2) In any proceedings for an offence under subsection (1), it is not a defence for the defendant to prove that the immigration offender was in possession of a permit or pass issued to the immigration offender under this Act or the regulations unless the defendant further proves that he or she had exercised due diligence to ascertain that the permit or pass was at the material time valid under this Act or the regulations.

(3) For the purpose of subsection (2), a defendant who is charged with an offence under subsection (1) is not to be deemed to have exercised due diligence unless the defendant —

(*a*) has inspected the permit or pass issued to the person harboured;

(*b*) has checked the permit or pass to ascertain that the particulars on the passport of the person harboured materially correspond with the particulars set out in the permit or pass; and

(*c*) has checked with —

(i) the Controller of Immigration or the Controller of Work Passes (as the case may be) that the permit or pass was valid at the material time; or

(ii) the employer to verify that the person is employed by the employer and that the person's particulars correspond with the employer's records, where the name of the employer of the person harboured is specified in the permit or pass.

(4) No prosecution for an offence under subsection (1) or for an attempt to commit that offence is to be instituted unless the person whom the defendant is alleged to have assisted, encouraged or induced in fact gave shelter to the immigration offender in consequence of such assistance, encouragement or inducement.

(5) A reference to a permit or pass in subsection (3) in relation to a person is to be read as a reference to the original copy of the permit or pass issued to that person under this Act or the regulations.

Marriage of convenience

57C.—(1) Any person who contracts or otherwise enters into a marriage —

(*a*) knowing or having reason to believe that the purpose of the marriage is to assist one of the parties to the marriage to obtain an immigration advantage; and

(*b*) where any gratification, whether from a party to the marriage or another person, is offered, given or received as an inducement or reward to any party to the marriage for entering into the marriage,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 10 years or to both.

[18/2012]

(2) Any person who arranges or otherwise assists in arranging a marriage between 2 other persons, with the intention of assisting one of the parties to the marriage to obtain an immigration advantage, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 10 years or to both.

[18/2012]

(3) This section applies to a marriage entered into whether in Singapore or outside Singapore.

[18/2012]

(4) In any proceedings for an offence under subsection (1) or (2), it is a defence for the person charged with the offence to prove that, although one purpose of the marriage was to assist a party to the marriage to obtain an immigration advantage, the defendant believed on reasonable grounds, when contracting or entering into the marriage, that the marriage would result in a genuine marital relationship.

[18/2012; 7/2016]

(5) For the purposes of subsection (4), what constitutes a genuine marital relationship is a question of fact and the court is to have regard to all the circumstances of the case in determining the question.

[18/2012]

(6) In this section —

"gratification" includes —

(*a*) money or any gift, loan, fee, reward, commission, valuable security or other property or interest in property of any description, whether movable or immovable;

(*b*) any office, employment or contract;

(*c*) any payment, release, discharge or liquidation of any loan, obligation or other liability, whether in whole or in part; and

(*d*) any other service, favour or advantage of any description;

"immigration advantage", in relation to a party to a marriage, means the grant or extension of the validity of any visa, pass, permit or re-entry permit under this Act or the regulations or any order made under this Act for that party or for a child or parent of that party.

[18/2012]

Wearing and possession of uniforms, etc., by others

57D.—(1) A person who, when the person is not an immigration officer —

(*a*) wears or possesses any immigration officer uniform, or uses any immigration officer insignia —

(i) for the purpose of personating or representing himself or herself as an immigration officer; or

(ii) knowing that it is likely to cause any member of the public to believe that he or she is an immigration officer;

(*b*) uses the designation or a rank of an immigration officer, in connection with any business, occupation or employment —

(i) for the purpose of personating or representing himself or herself as an immigration officer; or

(ii) knowing that it is likely to cause any member of the public to believe that he or she is an immigration officer;

(*c*) represents himself or herself, by word or conduct, to be an immigration officer for the purpose of personating or representing himself or herself as an immigration officer; or

(*d*) wears or possesses any immigration officer uniform, or uses any immigration officer insignia, in connection with any business, occupation or employment, for the purpose of falsely claiming, suggesting or implying —

(i) that the person receives or is to receive, a fee, commission or other reward for providing professional or other services in relation to a matter being dealt with or to be dealt with by the Controller;

(ii) that the Controller has agreed to acquire any goods or services provided by or on behalf of the person, or that those goods or services had previously been used or acquired by the Controller; or

(iii) that the person has the sponsorship or approval of the Controller for any goods or services provided by or on behalf of the person,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,500 or to imprisonment for a term not exceeding 6 months or to both.

[53/2018]

(2) An immigration officer who wears any immigration officer uniform or uses any immigration officer insignia otherwise than —

(*a*) in the course of, and for the purpose of, exercising the functions of an immigration officer; or

(*b*) for such other purpose authorised in writing by the Controller,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $2,500 or to imprisonment for a term not exceeding 6 months or to both.

[53/2018]

(3) It is a defence to any prosecution for an offence under subsection (1)(*a*) or (2) if the accused proves, on a balance of probabilities, that —

(*a*) the accused had the express permission of the Controller to wear or possess the immigration officer uniform or use the immigration officer insignia, as the case may be; or

(*b*) the accused wore or possessed the immigration officer uniform or used the immigration officer insignia (as the case may be) for the purposes of a public entertainment provided in compliance with the Public Entertainments Act 1958.

[53/2018]

(4) A person (whether or not an immigration officer) who —

(*a*) manufactures any immigration officer uniform or immigration officer insignia otherwise than under an agreement with the Government;

(*b*) sells any immigration officer uniform or immigration officer insignia to a person who is neither an immigration officer nor otherwise authorised or permitted under subsection (3) to wear or possess the immigration officer uniform or use the immigration officer insignia; or

(*c*) gives or provides, whether or not for a consideration, any immigration officer uniform or immigration officer insignia to a person who is neither an immigration officer nor otherwise authorised or permitted under subsection (3) to wear or possess the immigration officer uniform or use the immigration officer insignia,

shall be guilty of an offence and shall be liable on conviction to a fine not exceeding $10,000 or to imprisonment for a term not exceeding 3 years or to both.

[53/2018]

(5) It is a defence to any prosecution for an offence under subsection (4) if the accused proves, on a balance of probabilities, that —

(*a*) the accused had reasonable grounds to believe and did make reasonable inquiries to ascertain that the person to whom the immigration officer uniform or immigration officer insignia was sold, given or provided was —

(i) an immigration officer; or

(ii) a person otherwise authorised or permitted under subsection (3) to wear or possess the immigration officer uniform or use the immigration officer insignia; or

(*b*) the accused had received from the person to whom the immigration officer uniform or immigration officer insignia was sold, given or provided, evidence purporting to show that —

(i) that person was an immigration officer or was otherwise authorised or permitted under subsection (3) to wear or possess the immigration officer uniform or use the immigration officer insignia; and

(ii) it was reasonable to and the accused did accept that evidence as correct.

[53/2018]

(6) An offence under subsection (1), (2) or (4) is an arrestable offence.

[53/2018]

(7) In this section —

"immigration officer insignia" means —

(*a*) any item (being any insignia, emblem, logo, symbol, representation, device, badge of rank or other thing)

that is generally recognised as being used by an immigration officer;

(*b*) any part of any such item;

(*c*) any reasonable imitation of any such item, or part of such item; or

(*d*) any insignia, emblem, logo, symbol, representation, device, badge of rank or other thing prescribed as being within this definition;

"immigration officer uniform" means the uniform of an immigration officer, and includes —

(*a*) any part of such a uniform or any accoutrement of an immigration officer that is generally recognised as a part of the uniform or accoutrement of an immigration officer; or

(*b*) any reasonable imitation of such a uniform or accoutrement, or part of a uniform or accoutrement;

"sell" includes —

(*a*) exchange or let on hire;

(*b*) offer, expose, possess, send, forward or deliver for sale, exchange or hire; or

(*c*) cause, suffer or allow any sale, exchange or hire;

"use", in relation to immigration officer insignia, includes —

(*a*) driving on a public road a vehicle that has on it any immigration officer insignia; and

(*b*) using a reproduction or representation of immigration officer insignia,

but does not include wearing an immigration officer uniform.

[53/2018]

General penalty

58. Any person guilty of an offence under this Act for which no special penalty is provided shall be liable on conviction to a fine not

exceeding $2,000 or to imprisonment for a term not exceeding 6 months or to both.

When sentence of caning is prevented from being carried out

58A.—(1) If a sentence of caning imposed on a person under section 6(3)(*a*), 9(6), 11A(6)(*b*) or 15(3)(*b*) for an offence, or section 57(1A) for an offence under section 57(1)(*e*), is wholly or partially prevented from being carried out under section 331 of the Criminal Procedure Code 2010, that person must be kept in custody until the court that imposed the sentence revises the sentence.

(2) The court that imposed the sentence mentioned in subsection (1) may —

(*a*) remit the sentence; or

(*b*) impose, instead of as much of the sentence of caning as was not carried out —

(i) where the sentence of caning was imposed under section 6(3)(*a*), 9(6), 11A(6)(*b*) or 15(3)(*b*) — a fine not exceeding $6,000; or

(ii) where the sentence of caning was imposed under section 57(1A) — a fine not exceeding $10,000.

(3) The fine that the court may impose under subsection (2)(*b*) for an offence is in addition to any other punishment to which the person has been sentenced for the offence.

[Act 31 of 2023 wef 31/12/2024]

Composition of offences

59.—(1) The Controller or any immigration officer authorised by name or by office in that behalf by the Minister may compound such offence under this Act or the regulations as may be prescribed as being an offence that may be compounded by collecting from the person reasonably suspected of having committed the offence a sum not exceeding $2,000.

[Act 31 of 2023 wef 31/07/2025]

[Act 5 of 2025 wef 12/09/2025]

(2) Any authorisation of an immigration officer under subsection (1) must be published in the *Gazette*.

[Act 5 of 2025 wef 12/09/2025]

Jurisdiction of Courts

60.—(1) All offences under this Act or the regulations shall be cognizable by a District Court or a Magistrate's Court.

(2) Any District Court or Magistrate's Court may, despite anything in the Criminal Procedure Code 2010, impose the full punishment prescribed for any offence except that a Magistrate's Court shall not impose a sentence of imprisonment for a term exceeding 3 years.

[Act 31 of 2023 wef 31/12/2024]

Disposal of fees, rates, fines and forfeitures

61. All fees levied, all rates and fines imposed and recovered, all moneys forfeited and all costs and charges recovered under this Act must be paid into the Consolidated Fund.

[18/2012]

Amendment of Schedule

61A. The Minister may, by order in the *Gazette*, amend the Schedule, except that any other personal identifier so prescribed in the order must —

(*a*) be an image of, or a measurement or recording of, an external part of the human body or a person's voice; and

(*b*) not be an identifier the obtaining of which would involve the taking of an invasive sample within the meaning given by section 8 of the Registration of Criminals Act 1949.

[Act 26 of 2022 wef 12/06/2023]

Saving

62.—(1) Any person in Singapore whose presence is unlawful under the provisions of any previous written law for the time being in force in Singapore or any regulations or orders made thereunder is deemed to be unlawfully in Singapore for the purposes of this Act.

(2) Any authority to enter Singapore granted under the provisions of any law in force immediately before 16 April 1963 and valid on

that date is deemed to be a valid permit issued under the provisions of this Act but subject to any limitations imposed by that law.

THE SCHEDULE

Sections 2(1) and 61A

PERSONAL IDENTIFIERS

1. A person's fingerprint or handprint (taken using paper and ink, digital scanning technologies or otherwise).

2. A photograph or other image of a person's face and shoulders.

3. A person's signature.

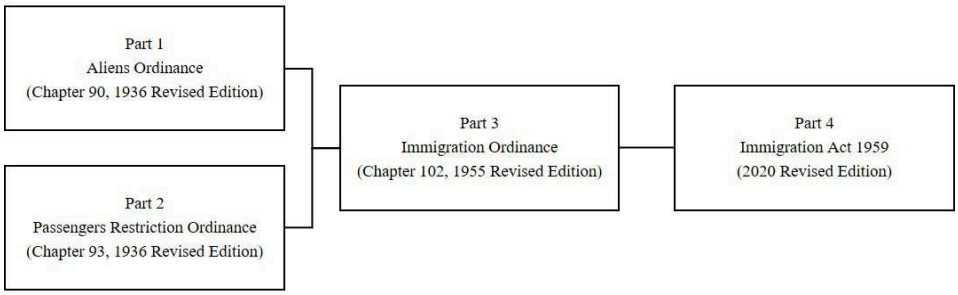
4. An image of a person's iris (taken using iris scanning technologies).

[S 703/2016]

LEGISLATIVE HISTORY
IMMIGRATION ACT 1959

This Legislative History is a service provided by the Law Revision Commission on a best-efforts basis. It is not part of the Act.

PICTORIAL OVERVIEW OF PREDECESSOR ACTS



LEGISLATIVE HISTORY DETAILS

PART 1
ALIENS ORDINANCE
(CHAPTER 90, 1936 REVISED EDITION)

1. Ordinance 18 of 1932 — Aliens Ordinance, 1932

Bill	:	G.N. No. 1311/1932
First Reading	:	8 August 1932
Second Reading	:	19 October 1932
Notice of Amendments	:	19 October 1932
Third Reading	:	5 December 1932
Commencement	:	1 January 1933

2. Ordinance 5 of 1934 — Aliens (Amendment) Ordinance, 1934

Bill	:	G.N. No. 2212/1933
First Reading	:	4 December 1933
Second Reading	:	12 February 1934
Notice of Amendments	:	12 February 1934
Third Reading	:	12 February 1934
Commencement	:	23 February 1934

3. Ordinance 26 of 1935 — The Aliens (Amendment) Ordinance, 1935

Bill	:	G.N. No. 1070/1935
First Reading	:	17 June 1935
Second and Third Readings	:	26 August 1935
Commencement	:	6 September 1935

4. 1936 Revised Edition — Aliens Ordinance (Chapter 90)

Operation	:	1 September 1936

5. Ordinance 3 of 1938 — Aliens (Amendment) Ordinance, 1938

Bill	:	G.N. No. 3591/1937
First Reading	:	15 December 1937
Second and Third Readings	:	14 February 1938
Commencement	:	7 March 1938

6. Ordinance 32 of 1939 — Aliens (Amendment) Ordinance, 1939

Bill	:	G.N. No. 1618/1939
First Reading	:	12 June 1939
Second Reading	:	28 August 1939
Notice of Amendments	:	28 August 1939
Third Reading	:	28 August 1939
Commencement	:	16 September 1939

PART 2
PASSENGERS RESTRICTION ORDINANCE
(CHAPTER 93, 1936 REVISED EDITION)

7. Ordinance IX of 1906 — The Exclusion Ordinance 1906

Bill	:	G.N. No. 1542/1905
First Reading	:	22 December 1905
Second Reading	:	19 January 1906
Notice of Amendments	:	2 March 1906
Third Reading	:	16 March 1906
Commencement	:	16 March 1906

Note: This Ordinance was read and construed as one with the Indian Act XLI of 1850.

8. Ordinance 14 of 1919 — Passengers Restriction Ordinance, 1919

Bill	:	G.N. No. 223/1919
First Reading	:	17 February 1919
Second Reading	:	10 March 1919
Notice of Amendments	:	31 March 1919
Third Reading	:	31 March 1919
Commencement	:	4 April 1919

Note: This Ordinance repealed the Indian Act XLI of 1850, the Exclusion Ordinance 1906 (Ordinance IX of 1906) and sections 3, 4 and 13 of the Registration of Aliens Ordinance 1917 (Ordinance 2 of 1917).

9. 1920 Revised Edition — Ordinance No. 169 (Passengers Restriction)

Operation	:	28 November 1921

10. 1926 Revised Edition — Ordinance No. 169 (Passengers Restriction)

Operation	:	1 August 1926

11. Ordinance 1 of 1930 — Passengers Restriction (Amendment) Ordinance, 1930

Bill	:	G.N. No. 2337/1929
First Reading	:	9 December 1929
Second Reading	:	27 January 1930
Third Reading	:	24 March 1930
Commencement	:	15 April 1930

12. Ordinance 1 of 1932 — Passengers Restriction (Amendment) Ordinance, 1932

Bill	:	G.N. No. 2258/1931
First Reading	:	7 December 1931
Second and Third Readings	:	26 January 1932
Commencement	:	17 February 1932

13. Ordinance 13 of 1934 — The Passengers Restriction (Amendment) Ordinance, 1934

Bill	:	G.N. No. 245/1934
First Reading	:	12 February 1934
Second and Third Readings	:	16 April 1934
Commencement	:	12 May 1934

14. 1936 Revised Edition — Passengers Restriction Ordinance (Chapter 93)

Operation	:	1 September 1936

15. Ordinance 18 of 1937 — Passengers Restriction (Amendment) Ordinance, 1937

Bill	:	G.N. No. 2066/1937
First and Second Readings	:	30 August 1937
Notice of Amendments	:	30 August 1937
Third Reading	:	30 August 1937
Commencement	:	4 September 1937

PART 3
IMMIGRATION ORDINANCE
(CHAPTER 102, 1955 REVISED EDITION)

16. Ordinance 5 of 1952 — Immigration Ordinance, 1952

Bill	:	G.N. No. S 113/1951
First Reading	:	24 April 1951
Select Committee Report	:	Council Paper No. 114 of 1951
Second Reading	:	20 February 1952
Notice of Amendments	:	20 February 1952
Third Reading	:	20 February 1952
Commencement	:	1 August 1953

17. 1955 Revised Edition — Immigration Ordinance (Chapter 102)

Operation	:	1 July 1956

18. Ordinance 31 of 1958 — Legislative Assembly (Presentation of Subsidiary Legislation) Ordinance, 1958

(Amendments made by section 2 read with the Schedule to the above Ordinance)

Bill	:	158/1958
First Reading	:	16 July 1958
Second Reading	:	13 August 1958
Notice of Amendments	:	10 September 1958
Third Reading	:	10 September 1958
Commencement	:	25 September 1958 (section 2 read with the Schedule) (section 2 read with the Schedule)

19. Ordinance 22 of 1959 — Immigration (Amendment) Ordinance, 1959

Bill	:	202/1959
First Reading	:	11 February 1959
Second and Third Readings	:	3 March 1959
Commencement	:	1 May 1959

20. G.N. No. S 223/1959 — Singapore Constitution (Modification of Laws) Order, 1959

Commencement	:	3 June 1959

21. Ordinance 62 of 1959 — State Advocate-General (Transfer of Powers) Ordinance, 1959

(Amendments made by section 5 read with the Schedule to the above Ordinance)

Bill	:	22/1959
First Reading	:	13 August 1959
Second and Third Readings	:	2 September 1959
Commencement	:	11 September 1959 (section 5 read with the Schedule) (section 5 read with the Schedule)

22. G.N. No. S (N.S.) 179/1959 — Singapore Constitution (Modification of Laws) (No. 5) Order, 1959

Commencement	:	20 November 1959

23. Ordinance 73 of 1960 — Immigration (Amendment) Ordinance, 1960

Bill	:	113/1960
First Reading	:	29 November 1960
Second and Third Readings	:	29 December 1960
Commencement	:	1 April 1961

PART 4
IMMIGRATION ACT 1959
(2020 REVISED EDITION)

24. M. Ordinance 12 of 1959 — Immigration Ordinance, 1959

Commencement	:	1 May 1959
Application	:	16 September 1963

Note: This Ordinance was extended to Singapore with amendments by the Immigration Act, 1963 (M. Act 27 of 1963) on 16 September 1963.

25. M. Act 27 of 1963 — Immigration Act, 1963

Commencement	:	16 September 1963

Note: This Act repealed the Immigration Ordinance (Chapter 102, 1955 Revised Edition) and extended the Federation of Malaya Immigration Ordinance, 1959 (Ordinance 12 of 1959) with amendments to Singapore.

26. Act 1 of 1966 — Immigration (Amendment) Act, 1966

Bill	:	70/1966
First Reading	:	31 December 1965
Second and Third Readings	:	23 February 1966
Commencement	:	4 March 1966

27. G.N. No. S 145/1966 — Modification of Laws (Immigration) Order, 1966

Commencement	:	22 July 1966

28. 1966 Reprint — Immigration Ordinance, 1959

Reprint	:	27 July 1966

29. Act 12 of 1970 — Immigration (Amendment) Act, 1970

Bill	:	26/1969
First Reading	:	22 December 1969

Second and Third Readings	:	27 January 1970
Commencement	:	19 June 1970

30. 1970 Revised Edition — Immigration Act (Chapter 81)

Operation	:	1 April 1971

31. Act 21 of 1973 — Statutes of the Republic of Singapore (Miscellaneous Amendments) Act, 1973

(Amendments made by section 2 read with the Schedule to the above Act)

Bill	:	16/1973
First Reading	:	7 March 1973
Second and Third Readings	:	20 March 1973
Commencement	:	6 April 1973 (section 2 read with the Schedule) (section 2 read with the Schedule)

32. Act 60 of 1973 — Immigration (Amendment) Act, 1973

Bill	:	52/1973
First Reading	:	28 August 1973
Second Reading	:	30 November 1973
Notice of Amendments	:	30 November 1973
Third Reading	:	30 November 1973
Commencement	:	1 March 1974

33. G.N. No. S 353/1975 — Metrication (Immigration Act) Order, 1975

Commencement	:	1 January 1976

34. G.N. No. S 68/1976 — The Metrication (Immigration Act) Order, 1975

Commencement	:	1 January 1976

35. Act 13 of 1977 — Immigration (Amendment) Act, 1977

Bill	:	15/1977
First Reading	:	2 September 1977
Second and Third Readings	:	9 November 1977
Commencement	:	16 December 1977

36. Act 35 of 1984 — Immigration (Amendment) Act 1984

Bill	:	30/1984

First Reading : 19 October 1984

Second and Third Readings : 20 November 1984

Commencement : 7 December 1984

37. 1985 Revised Edition — Immigration Act (Chapter 133)

Operation : 30 March 1987

38. G.N. No. S 22/1989 — Revised Edition of the Laws (Rectification) Order 1989

Operation : 30 March 1987

39. Act 6 of 1989 — Immigration (Amendment) Act 1989

Bill : 8/1989

First Reading : 16 January 1989

Second and Third Readings : 26 January 1989

Commencement : 31 March 1989

40. Act 34 of 1989 — Immigration (Amendment No. 2) Act 1989

Bill : 36/1989

First Reading : 4 August 1989

Second and Third Readings : 31 August 1989

Commencement : 13 October 1989

41. Act 38 of 1993 — Immigration (Amendment) Act 1993

Bill : 32/1993

First Reading : 12 October 1993

Second and Third Readings : 10 November 1993

Commencement : 22 April 1994

42. 1995 Revised Edition — Immigration Act (Chapter 133)

Operation : 15 March 1995

43. G.N. No. S 227/1995 — Revised Edition of the Laws (Rectification) Order 1995

Operation : 15 March 1995

44. Act 41 of 1995 — Immigration (Amendment) Act 1995

Bill : 33/1995

First Reading : 27 September 1995

Second and Third Readings	:	1 November 1995
Commencement	:	1 March 1996

45. 1997 Revised Edition — Immigration Act (Chapter 133)

Operation	:	20 December 1997

46. Act 34 of 1998 — Immigration (Amendment) Act 1998

Bill	:	35/1998
First Reading	:	31 July 1998
Second Reading	:	4 September 1998
Notice of Amendments	:	4 September 1998
Third Reading	:	4 September 1998
Commencement	:	5 October 1998

47. Act 4 of 2003 — Customs (Amendment) Act 2003
(Amendments made by section 26 read with item (12) of the Schedule to the above Act)

Bill	:	6/2003
First Reading	:	10 March 2003
Second and Third Readings	:	21 March 2003
Commencement	:	1 April 2003 (section 26 read with item (12) of the Schedule) (section 26 read with item (12) of the Schedule)

48. Act 53 of 2004 — Immigration (Amendment) Act 2004

Bill	:	51/2004
First Reading	:	19 October 2004
Second and Third Readings	:	16 November 2004
Commencement	:	15 January 2005

49. Act 42 of 2005 — Statutes (Miscellaneous Amendments) (No. 2) Act 2005
(Amendments made by section 6 read with item (7) of the Fourth Schedule to the above Act)

Bill	:	30/2005
First Reading	:	17 October 2005
Second and Third Readings	:	21 November 2005

Commencement	:	1 January 2006 (section 6 read with item (7) of the Fourth Schedule) (section 6 read with item (7) of the Fourth Schedule)

50. Act 2 of 2007 — Statutes (Miscellaneous Amendments) Act 2007
(Amendments made by section 10 of the above Act)

Bill	:	14/2006
First Reading	:	8 November 2006
Second and Third Readings	:	22 January 2007
Commencement	:	1 March 2007 (section 10) (section 10)

51. Act 30 of 2007 — Employment of Foreign Workers (Amendment) Act 2007
(Amendments made by section 28 read with item (3) of the Schedule to the above Act)

Bill	:	17/2007
First Reading	:	9 April 2007
Second and Third Readings	:	22 May 2007
Commencement	:	1 July 2007 (section 28 read with item (3) of the Schedule) (section 28 read with item (3) of the Schedule)

52. Act 33 of 2007 — Passports Act 2007
(Amendments made by section 62 read with the Second Schedule to the above Act)

Bill	:	21/2007
First Reading	:	21 May 2007
Second and Third Readings	:	16 July 2007
Commencement	:	1 December 2007 (section 62 read with the Second Schedule) (section 62 read with the Second Schedule)

53. 2008 Revised Edition — Immigration Act (Chapter 133)

Operation	:	1 January 2008

54. Act 5 of 2010 — Moneylenders (Amendment) Act 2010
(Amendments made by section 13 of the above Act)

Bill	:	23/2009
First Reading	:	23 November 2009

Second and Third Readings	:	12 January 2010
Commencement	:	11 February 2010 (section 13) (section 13)

55. Act 15 of 2010 — Criminal Procedure Code 2010
(Amendments made by section 430 read with item 47 of the Sixth Schedule to the above Act)

Bill	:	11/2010
First Reading	:	26 April 2010
Second Reading	:	18 May 2010
Commencement	:	2 January 2011 (section 430 read with item 47 of the Sixth Schedule) (section 430 read with item 47 of the Sixth Schedule)

56. Act 18 of 2012 — Immigration (Amendment) Act 2012

Bill	:	16/2012
First Reading	:	9 July 2012
Second and Third Readings	:	13 August 2012
Commencement	:	19 December 2012

57. Act 16 of 2016 — Statutes (Miscellaneous Amendments) Act 2016
(Amendments made by section 10 of the above Act)

Bill	:	15/2016
First Reading	:	14 April 2016
Second and Third Readings	:	9 May 2016
Commencement	:	10 June 2016 (section 10) (section 10)

58. Act 7 of 2016 — Women's Charter (Amendment) Act 2016
(Amendments made by section 47 of the above Act)

Bill	:	6/2016
First Reading	:	26 January 2016
Second and Third Readings	:	29 February 2016
Commencement	:	1 October 2016 (section 47) (section 47)

59. G.N. No. S 703/2016 — Immigration Act (Amendment of Schedule) Order 2016

Commencement	:	1 January 2017

60. Act 6 of 2018 — Immigration (Amendment) Act 2018

Bill	:	46/2017
First Reading	:	6 November 2017
Second and Third Readings	:	8 January 2018
Commencement	:	1 April 2018

61. Act 53 of 2018 — Civil Defence and Other Matters Act 2018
(Amendments made by Part 2 of the above Act)

Bill	:	44/2018
First Reading	:	1 October 2018
Second and Third Readings	:	20 November 2018
Commencement	:	1 February 2019 (section 25) (section 25) 13 May 2019 (section 26) (section 26)

62. Act 15 of 2019 — Criminal Law Reform Act 2019
(Amendments made by section 176 of the above Act)

Bill	:	6/2019
First Reading	:	11 February 2019
Second Reading	:	6 May 2019
Notice of Amendments	:	6 May 2019
Third Reading	:	6 May 2019
Commencement	:	1 January 2020 (section 176) (section 176)

63. 2020 Revised Edition — Immigration Act 1959

Operation	:	31 December 2021

64. Act 26 of 2022 — Registration of Criminals (Amendment) Act 2022
(Amendments made by the above Act)

Bill	:	19/2022
First Reading	:	1 August 2022
Second and Third Readings	:	12 September 2022

Commencement	:	12 June 2023

65. Act 13 of 2024 — Infectious Diseases (Amendment) Act 2024
(Amendments made by the above Act)

Bill	:	7/2024
First Reading	:	5 February 2024
Second and Third Readings	:	7 March 2024
Commencement	:	9 April 2024

66. Act 10 of 2024 — Enlistment and Other Matters (Amendment) Act 2024

Bill	:	1/2024
First Reading	:	1 January 2024
Second and Third Readings	:	16 February 2024
Commencement	:	1 May 2024

67. Act 16 of 2024 — Law Enforcement and Other Matters Act 2024
(Amendments made by the above Act)

Bill	:	14/2024
First Reading	:	7 March 2024
Second and Third Readings	:	2 April 2024
Commencement	:	17 June 2024

68. Act 5 of 2025 — Electronic Gazette and Legislation Act 2025

Bill	:	47/2024
First Reading	:	11 November 2024
Second and Third Readings	:	7 January 2025
Commencement	:	12 September 2025

69. Act 31 of 2023 — Immigration (Amendment) Act 2023
(Amendments made by the above Act)

Bill	:	26/2023
First Reading	:	2 August 2023
Second and Third Readings	:	18 September 2023
Commencement	:	31 December 2024 31 July 2025 1 December 2025

70. Act 19 of 2025 — Statutes (Miscellaneous Amendments) Act 2025

Bill	:	9/2025
First Reading	:	22 September 2025
Second and Third Readings	:	15 October 2025
Commencement	:	5 December 2025

71. Act 16 of 2026 — Cross-Border Railways (Border Control Co-location) Act 2026

(Amendments made by the above Act)

Bill	:	10/2026
First Reading	:	7 April 2026
Second and Third Readings	:	5 May 2026
Commencement	:	30 September 2026

Abbreviations

(updated on 29 August 2022)

G.N.	Gazette Notification
G.N. Sp.	Gazette Notification (Special Supplement)
L.A.	Legislative Assembly
L.N.	Legal Notification (Federal/Malaysian)
M.	Malaya/Malaysia (including Federated Malay States, Malayan Union, Federation of Malaya and Federation of Malaysia)
Parl.	Parliament
S	Subsidiary Legislation
S.I.	Statutory Instrument (United Kingdom)
S (N.S.)	Subsidiary Legislation (New Series)
S.S.G.G.	Straits Settlements Government Gazette
S.S.G.G. (E)	Straits Settlements Government Gazette (Extraordinary)